

GUIDELINES FOR THE PREPARATION OF REPORTS BY MEMBER STATES ON THE APPLICATION OF THE 1960 CONVENTION AND RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION

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1. Introduction

The Convention against Discrimination in Education (“the Convention”) and the Recommendation against Discrimination in Education (“the Recommendation”), adopted by UNESCO’s General Conference in 1960, respond to UNESCO’s constitutional mandate to “*advance the ideal of equality of educational opportunities without regard to race, sex or any distinctions, economic or social*”. The Convention is the first legally binding international instrument providing for the **right to education** and the only one exclusively devoted to it.

The right to education is today one of the key principles underpinning the Education 2030 agenda and Sustainable Development Goal 4 (SDG4) adopted by the international community. SDG4 is rights-based and seeks to ensure the full enjoyment of the right to education as fundamental to achieving sustainable development. Its scope captures the multidimensional nature of the right to education.

The Convention has been recognized as a **cornerstone of Education 2030 agenda**. It also represents a powerful tool to advance SDG4 by ensuring effective articulation between normative and operational work.

The present Guidelines are intended to assist Member States in the preparation of national reports on the implementation of the Convention as well as the Recommendation in the context of the 10th Consultation.

2. Reporting obligations

There are differences in the legal nature of the obligations under the Convention, as distinguished from those under the Recommendation. The Convention has binding force and the States Parties are obliged to incorporate its provisions into their national Constitution or domestic law. The Recommendation, non-binding in nature, has political and moral force. Its adoption sought to take into account the difficulties that certain states might experience, in particular on account of their federal structure, in ratifying the Convention.

Bearing in mind the differences in wording and in legal scope inherent to the nature of these two categories of instruments, the content of the Recommendation is identical to that of the Convention. Member States are expected to give effect to it in national legislation and education policies.

Most importantly, the reporting obligation under the provisions of Article VII of the Convention and of the Recommendation is the same. Article VIII of UNESCO’s Constitution states that “*Each Member State shall submit to the Organization, at such times and in such manner as shall be determined by the General Conference, reports on the laws, regulations and statistics relating to its educational, scientific and cultural institutions and activities, and on the action taken upon the recommendations and conventions referred to in Article IV, paragraph 4*”. Therefore, even if a country is not a State Party to the Convention, it needs to submit a report on the implementation of the Recommendation, which means that **all UNESCO Member States are expected to submit a national report** on the implementation of these instruments in the context of monitoring consultations.

3. Participation in consultations

In light of the Education 2030 agenda, the monitoring of the implementation of the Convention and the Recommendation is of crucial importance in order to ensure an education that is truly for all and to counter persistent inequalities in access, participation and learning outcomes at all levels, particularly for the most vulnerable groups. Concrete measures taken by Member States in accordance with their legal obligations under these instruments contribute to this process.

As the scope and content of the legal obligations under the right to education are aligned with the 10 targets of SDG4 on education, efforts have also been made to ensure that the specific components are included in the guidelines and that the guidelines serve as a valuable monitoring tool for measuring progress towards SDG4 targets.¹ In addition, in view of the educational challenges posed by the influxes of refugees and displacements worldwide, the guidelines provide the opportunity to report on concrete measures taken during the reporting period to include refugees and migrants in their educational systems. An emphasis is also to be placed on legal and policy framework that protects the rights of national minorities.

The reporting should be as comprehensive as possible and the process needs to be **participatory** and conducted in cooperation between ministries of education and other ministries dealing with aspects of the right to education. Relevant information from CSOs having education as their main field of activity should also be provided.

The preparation of national reports provides a **good opportunity** for Member States to assess the implementation of the right to education in their country, identify specific challenges, build constructive dialogue with other actors involved in this field and share good practices.

4. General indications

The reporting period for the 10th Consultation on the implementation of the Convention and the Recommendation covers four years (2017-2020).

Member States that already reported to the 9th Consultation (2016-2017) are invited to **refer to their reports** when appropriate. Relevant information supplied for other reporting instances may be reproduced or referred to with precise indication as to its retrieval. Similarly, hyperlinks to any useful documents or relevant legal and policy texts are most welcome and texts can also be added in the annex.

In the preparation of reports, Member States are kindly requested to provide brief and concise information, although they may provide details on the scope of the question if deemed necessary. In addition to a description of the constitutional, legislative, administrative and policy framework established for the implementation of the provisions guaranteed by the instruments, the information supplied by Member States should demonstrate how legal norms and practices comply with the Convention and the Recommendation.

5. Modalities

With a view to simplify the Guidelines while providing necessary substantive information to assist Member States in the preparation of responses, two series of questions/remarks are presented:

- (1) Open-ended and closed-ended questions to be directly filled in by Member States through a participatory process. Please note that multiple answers may be provided where relevant.
- (2) Additional information aimed at guiding Members States to structure and detail their responses to the open-ended questions (including remarks on how to respond efficiently to the questions raised). These elements are presented in italics.

In their responses, Member States are encouraged to provide information in a concise manner while preserving substantive and relevant content.

¹ Please note that the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms is used specifically for monitoring SDG target 4.7. The 1960 Convention and Recommendation contribute more generally to the body of evidence for monitoring the targets of SDG4.

GENERAL INFORMATION:

Country name: Republic of Serbia

Organization or entity responsible for the preparation of the report: Ministry of Education, Science, and Technological Development

I. Information on the legislative, judicial, administrative and other measures taken by the state at the national level**1. Ratification of the Convention²**

Is your country a State Party to the Convention?

☐ **Yes**

☐ No: Does your country plan to ratify this instrument?

☐ Yes: Please indicate the stage of ratification process reached by your country:

☐ Close to ratification

☐ Underway

☐ Actively under preparation

- Please briefly explain the difficulties encountered in completing the ratification process and the means of overcoming them:

Describe:

➔ *the obstacles, whether legal, institutional, political or practical*

➔ *the means of overcoming them and the extent to which UNESCO can assist in completing the process*

☐ No, not considering ratification in the near future. Please explain why:

2. **Ratification of the Protocol³ instituting a Conciliation and Good Offices Commission to be responsible for seeking the settlement of any disputes which may arise between States Parties to the Convention against Discrimination in Education**

Has your country ratified the Protocol?

☐ Yes

☐ **No**, please briefly explain the difficulties encountered:

3. **Legal framework governing the protection of rights guaranteed in the Convention and the Recommendation in the national legal system**

In case your country is a State Party to the Convention:

- Is the Convention directly applicable in your country's domestic law following its ratification?

☐ **Yes** ☐ No

- If not, has it been incorporated into the national Constitution or domestic law so as to be directly applicable?

☐ Yes ☐ No

This seeks information on whether the provisions of the Convention are guaranteed in a domestic legal instrument. The report should list the main legal texts (Constitution, legislative text or other provisions) adopted to guarantee the right to education for all and to promote equal educational opportunities. References, dates and aims could be provided.

- Have the provisions of the Convention been invoked before and given effect to by courts, tribunals and administrative authorities?

☐ Yes ☐ **No**

If yes, please illustrate on the basis of available case law and jurisprudence. Information could also be given about the judicial, administrative and other competent authorities having jurisdiction with respect to the rights guaranteed by the Convention and the scope of such competence.

In case your country is not a State Party to the Convention:

- Have legislative measures been taken pursuant to the Recommendation?

☐ Yes ☐ No

If yes, the report could list the main texts adopted to guarantee the right to education for all and to promote equal educational opportunities. References, dates and aims could be provided.

- Please explain briefly the extent to which public policies and programmes correspond to the general provisions of the Recommendation.

Information supplied could demonstrate how such policies and programmes comply with commitments of the right to education under the Recommendation.

II. Information on the implementation of the Convention or Recommendation

1. Non-discrimination and equal opportunities in education in the context of Sustainable Development Goal 4 (SDG4)

Articles/Paragraphs 1(1), 2 and 3 of the Convention/Recommendation provide for non-discrimination and equal opportunities in education. This part relates to the main purpose of the Convention/Recommendation that is to underscore the state obligation to proscribe any form of discrimination in education while promoting equality of educational opportunity.

This corresponds to the overall aspiration of SDG4 which aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all” by 2030. It therefore covers all the SDG4 targets, but also specifically SDG target 4.5.⁴

- 1.1 Please indicate measures adopted by your government to eliminate and prevent discrimination in education within the meaning of the Convention/Recommendation (please tick all that apply)⁵ (several items could be ticked/mentioned):

☐ **Constitutional laws and/or legislation prohibit discrimination in education**

☐ **Regulations prohibit discrimination in education**

☐ **Policies and programmes aim to eliminate and prevent discrimination in education**

☐ **Access to justice in case of violations of the right to non-discrimination in education**

☐ **Combating discrimination in terms of curriculum**

☐ Other:

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Please provide a brief description of the relevant legal, regulatory or policy texts including measures on:

➔ *Non-discrimination in the admission of pupils to educational institutions*

➔ *Non-differential treatment, including of foreign nationals resident in your country*

Anti-discrimination and affirmative legislation in the field of education

Law on the Fundamentals of the Education System - LFES (*“Official Gazette of RS”, no. 88/2017, 27/2018 – other law, 10/2019, 27/2018 -other law and 6/2020*) defines the right to education and upbringing, in Article 3: “Every person has the right to education and upbringing.” Furthermore, LFES states that the citizens of the Republic of Serbia are equal in exercising the right to education, then that persons with disabilities have the right to education and upbringing that respects

⁴ Which calls on states to “eliminate gender disparities in education and ensure equal access to all levels of education and vocational training for the vulnerable, including persons with disabilities, indigenous peoples and children in vulnerable situations”.

⁵ See: Article/Paragraph 1(1).

their educational needs, emphasizing individual or group additional support in teaching and learning. Foreign citizens, as well as a stateless person and a person seeking citizenship, have the right to education and upbringing under the same conditions and in the manner prescribed for citizens of the Republic of Serbia. Article 4 of this Law states that 1) upbringing and education of children in the year before starting school, 2) primary education and upbringing of students and adults, as well as 3) secondary education of regular and irregular students, under equal conditions, are free of charge. The law further ensures equality and accessibility of the exercise of the right to education based on social justice and the principle of equal opportunities without discrimination, respect for human rights and the rights of every child, student and adult, and respect for human dignity; education in a democratically organized and socially responsible institution in which openness, cooperation, tolerance, awareness of cultural and civilizational connection in the world, commitment to basic moral values, values of justice, truth, solidarity, freedom, honesty and responsibility are nurtured and in which full respect for the rights of the child, student and adult is ensured. Democracy through the involvement of all participants in the education system is also one of the tasks of the school. Among the goals of education and upbringing (Article 8) are providing a stimulating and safe environment for the overall development of children, students and adults, developing non-violent behaviour and establishing zero tolerance for violence, developing awareness of the importance of sustainable development, protection and preservation of nature and environment and environmental ethics, protection and welfare of animals, developing positive human values, developing a sense of solidarity, understanding and constructive cooperation with others and fostering friendship, developing competencies to understand and respect children's rights, human rights, civil liberties and the ability to live democratically and a just society, development and respect for racial, national, cultural, linguistic, religious, gender, sex and age equality, tolerance and respect for diversity. The key competencies for lifelong learning are (Article 11): social and civic competencies, while one of the general interdisciplinary competencies (Article 12) is responsible participation in a democratic society. The rights of the child and students (Article 79) are realized through respect for the person, protection from discrimination, violence, abuse and neglect, information on the rights and obligations, protection and fair treatment of the child and student. The law further defines the prohibition of discrimination (Article 110): "Discrimination and discriminatory treatment are prohibited in an institution, which in a direct or indirect, open or covert manner, unjustifiably makes a difference or acts unequally, i.e. fails (excludes, restricts or gives priority) , in relation to a person or groups of persons, as well as to members of their families or persons close to them in an overt or covert manner, based on race, colour, ancestry, citizenship, migrant or displaced person status, nationality or ethnicity origin, language, religious or political beliefs, gender, gender identity, sexual orientation, property status, social and cultural background, birth, genetic characteristics, health status, developmental difficulties and disability, marital and family status, conviction, age, appearance, membership in political, trade union and other organizations and other real or assumed personal characteristics, and on other grounds determined by the law which prescribes the prohibition of discrimination. Special measures introduced for the purpose of achieving full equality, protection and progress of persons, i.e. groups of persons who are in an unequal position, shall not be considered discrimination. The institution is obliged to take all measures prescribed by this law when discriminatory behaviour in the institution is suspected or identified". Article 112 prohibits any conduct that offends reputation, honour or dignity. Relying on this article of LFES, two rulebooks were adopted - Rulebook on more detailed criteria for recognizing forms of discrimination by employees, children, students or third parties in educational institutions, adopted in February 2016 (*Official Gazette of RS No. 22/2016*) and the Rulebook on the conduct of the institution in case of suspicion or established discriminatory behaviour and insult to the reputation, honour or dignity of a person, (*Official Gazette of RS No. 85/2018*), which entered into force on 01.09.2018. The rulebooks have established tools for reacting in case of suspicion or established discriminatory behaviour, preventive action and work on raising awareness of the importance of equality and justice in education, defining the obligations and responsibilities of a child, student, adult, parent or other legal representative, employee, third persons in the institution or bodies of the institution and other issues of importance for protection against discrimination. Both documents define segregation as a more severe form of discrimination, then propose preventive activities at the level of the local self-government unit in preventing segregation, preventive activities of the institution in preventing segregation, interventions and desegregation measures and measures applied to individual children and students during desegregation. The importance of the new Rulebook is reflected in the preventive activities ordered to the educational institution, but also in the intervention, that eliminate discrimination, ensure safety of participants in the educational process (those who suffer, witness and act), reduce the risk of recurrence, mitigate consequences for all participants, and monitor the effects of the measures taken. On the other hand, the steps in the intervention in case of discrimination prescribed by the new Rulebook are of additional importance, namely: checking the obtained information, stopping such behaviour and calming the participants, informing and calling parents, gathering relevant information and consultations, taking and monitoring measures and activities. Article 136 of the LFES requires that the pedagogical assistant provides assistance and additional support to a group of children and students in the institution, in accordance with their needs and assistance to employees in order to improve their work. In his work, the pedagogical assistant cooperates with parents, i.e. other legal representatives, bodies of the local self-government unit, competent institutions, organizations and associations. Andragogy assistant provides support to adults for inclusion in the education

system and assistance to employees in implementing education programmes. In his work, the Andragogy Assistant cooperates with the bodies of the local self-government unit, competent institutions, organizations and associations. In order to clearly define the role of pedagogical and andragogical assistant, MOESTD adopted the Rulebook on pedagogical and andragogical assistant (*"Official Gazette of RS"*, No. 8772019) which regulates job description, education, additional knowledge / exams / work experience of pedagogical assistants. The Rulebook defines three types of assistants: pedagogical assistant for children and Roma students who need additional support in education, pedagogical assistant for children with disabilities and andragogical assistant. Pedagogical assistant for Roma children and students who need additional support in education provides help and additional support to groups of children and students in the institution and help and support to teachers, educators and professional associates, in teaching and extracurricular activities, in order to improve their work with Roma children and students who need additional support in the education process. He also actively and continuously cooperates with the parents of children and students, i.e. other legal representatives, in order to strengthen the family and improve the social and emotional status of children and students in the institution. Andragogic Assistant provides support to participants and candidates in accordance with their needs, cooperates with education providers for adults and employees (professional associates, associates, etc.), as well as the competent authorities of the local government, institutions, organizations and associations, in order to achieve quality activities for adult education. The most significant effects of the support measures taken are reflected in the increased coverage of Roma children and students and children and students with disabilities in the education system, reduced drop-out rates and early school leaving. There is a special increase in students who enrol and finish high school. **Law on Preschool Education** (*"Official Gazette of RS"*, No. 18/2010, 101/2017, 113/2017 – other law, 95/2018 – other law and 10/2019) states in principles the accessibility: equal right and accessibility of all forms of pre-school upbringing and education, without discrimination and segregation on the basis of gender, social, cultural, ethnic, religious or other affiliation, place of residence or place of temporary stay, financial or health status, developmental difficulties and disabilities, and other grounds, democracy: respect for the needs and rights of children and families, including the right to respect their opinion, active participation, decision-making and accountability. Article 14 defines that a child - foreign citizen and stateless child and applicant for citizenship, a child from a vulnerable group without proof of residence and other personal documents, exiled or displaced person, enrolls in a preschool institution, i.e. school, which realizes a preparatory preschool programme, under the same conditions and in the manner prescribed for citizens of the Republic of Serbia. This law also defines support for children from vulnerable social groups (Article 34) so that the preschool institution provides removal of physical and communication barriers, i.e. makes adjustments to a child who needs additional support in upbringing and education due to social deprivation, developmental difficulties, disability and other reasons, through the development, adoption and implementation of an individual educational plan (IEP1). **Law on Primary Education** (*"Official Gazette of RS"*, No. 88/2017, 27/2018 – other law, 10/2019, 27/2018 – other law and 6/2020) in Article 4, The right to primary education and upbringing defines that every person has the right to free and quality primary education and upbringing in a state school. A student of a state school may use books, school materials, transportation, food, as well as accommodation free of charge when necessary. The task of the school (Article 9) is to provide quality education and upbringing for every child and student, under equal conditions, regardless of where the school is located, i.e. where education and upbringing take place. Persons who perform educational work and other persons employed at the school will particularly promote equality among all students and actively oppose all types of discrimination and violence. The goals of primary education (Article 21) include the provision of a stimulating and safe environment for the overall development of students, developing nonviolent behaviour and establishing zero tolerance for violence, developing awareness of the importance of sustainable development, protection and preservation of nature and environment and environmental ethics, protection and welfare of animals, developing a sense of solidarity, understanding and constructive cooperation with others and fostering friendship, developing positive human values, developing competencies to understand and respect the rights of the child, human rights, civil liberties and the ability to live in a democratic and just society, development and respect of racial, national, cultural, linguistic, religious, sex, gender and age equality, tolerance and respect for diversity, development of interculturalism, respect and preservation of national and world cultural heritage. This law further prescribes that (Article 41) the Programme of protection against violence, abuse and neglect, the programme of prevention of discrimination and programmes of prevention of other forms of risky behaviour are an integral part of the school programme, and are realized through various teaching and free activities with students, employees, parents. According to Article 55 of this law, children from vulnerable social groups can enrol in school without proof of residence and the necessary documentation, and with the submitted proof of the child's medical examination. **Law on Secondary Education** (*"Official Gazette of RS"*, No. 55/2013, 101/2017, 27/2018 – other law and 6/2020) defines in Article 2 the goals and general outcomes of secondary education and upbringing through the development of key competences necessary for further education and active role of citizens for life in the modern society, respect for racial, national, cultural, linguistic, religious, sex, gender and age equality, tolerance and respect for diversity. Interdisciplinary competencies, the outcomes of which need to be achieved at the basic level at the end of secondary education, are: competencies for lifelong learning, responsible participation in a democratic society. Article 12 provides for the removal of physical and communication barriers and additional support in education for students and adults

who, due to developmental disabilities and other disabilities, specific learning disabilities, social deprivation, and the risk of early school leaving, are in need of such support. The goal of additional support in education and upbringing is to achieve optimal inclusion of students and adults in regular educational work, independence in the peer team and its progress in education and preparation for the world of labour. **Law on Dual Education** (*"Official Gazette of RS", No. 101/2017 and 6/2020*) underlines in Article 3 the following principles: ethics - respect for the personality and dignity of students and achieving the goals of education, accessibility - equal conditions for all for quality access to dual education, equal opportunities - providing equal conditions for acquiring education, without any discrimination based on gender, racial, national, cultural, ethnic and religious affiliation, language, sexual orientation, place of residence, financial status, disability and other personal characteristics. Discrimination against students, physical, psychological, social, sexual, digital and any other violence, abuse and neglect of students are prohibited during the work-based learning with the employer (Article 10). **Law on Textbooks** (*"Official Gazette of RS", No. 27/2018*). Equal opportunities and prohibition of discrimination are defined in Article 13: "Textbooks, manuals, accompanying electronic material, additional teaching aid, didactic means and didactic game tools with their content or form should ensure the application of the principles of equal opportunities and respect for diversity. Textbooks, manuals, accompanying electronic material, additional teaching aid, didactic means and didactic game tools with their content or form must not discriminate or bring in a disadvantaged position groups and individuals or encourage such behaviour, in accordance with the law governing the prohibition of discrimination".

Within the mandatory professional development, one of the five priority areas of mandatory teacher training, established by the Rulebook on Continuous Professional Development of Teachers, Educators and Professional Associates is: creating a tolerant and non-discriminatory environment for each individual, as well as violence prevention, prevention of discrimination, and inclusion of children from socially marginalized groups.

Law on Higher Education (*"Official Gazette of RS", No. 88/17, 27/18- other law, 73/18, 67/19 and 6/20-other law*), in the provision of Article 4, paragraph 1, item 7) promotes respect for human rights and civil liberties, including the prohibition of all forms of discrimination in the field of higher education. Article 9 establishes the general right of access to higher education for persons with completed secondary education. The law promotes gender equality in terms of the composition of the National Council for Higher Education, the Steering Board of the National Accreditation Body and the Commission for Accreditation of Higher Education Institutions, the governing bodies of higher education institutions (Art. 11, 16, 20 and 62). The law prescribes the obligation of the Government to determine an additional number of students whose studies are financed from the budget for the implementation of affirmative action measures, enrolment of persons with disabilities and members of the Roma national minority (Article 100, paragraph 4.) The Law defines that students with disability and the students enrolled based on the affirmative measure who, in the current year, realise a total of 36 ECTS credits shall have the right to be financed from the budget in the following academic year and that they shall retain the status of a student until the expiry of the deadline which is defined as the triple number of academic years required for the realization of the study programme (Article 103, paragraph 5, and Article 109, paragraph 2.) The access to higher education is ensured to foreign nationals under the same conditions applied for the citizens of the Republic of Serbia in terms of previous education, if they know the language of instruction (Article 97, paragraphs 2-4).

- 1.2 Please indicate actions taken by your government to guarantee equal access to all levels and types of education in your country (several items could be ticked/mentioned):

☐ **Constitutional laws and/or legislation guarantee equal access to education**

☐ **Regulations ensure equal access to all levels and types of education**

☐ **Policies and programmes ensure equal access to all levels and types of education**

☐ Other:

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- Please indicate the relevant legal, regulatory or policy texts and provide a brief description of the measures taken:

This notably is covered under SDG target 4.1 and partly target 4.b⁶

Measures of support for improving the education of children and students from vulnerable social groups implemented by MOESTD:

Enrolment in the mandatory preparatory preschool programme: According to the Law on Preschool Education (*"Official Gazette of RS"*, 18/2010, 101/2017, 113/2017 - other law, 95/2018 - other law and 10/2019) children from vulnerable groups have the right of priority enrolment in preschool. The Rulebook on Detailed Conditions for Determining Priorities for Enrolment of Children in Preschool Institution defines the criteria for priority enrolment, among which children from socially non-stimulating backgrounds have the right of priority enrolment.

Primary school enrolment: Procedures for primary school enrolment have been facilitated with the aim of increasing the coverage of primary education for students from socially vulnerable groups. **Law on Primary Education** (*"Official Gazette of RS"*, no. 88/2017, 27/2018 – other law, 10/2019, 27/2018 – other law and 6/2020) defines that children from vulnerable groups can enrol in school without proof of parental residence and the necessary documentation. The examination of the child is performed only after the child is enrolled in school and it is also possible in the child's mother tongue. In addition, during primary education, support measures are adopted, if necessary, through the development of an individual educational plan, and other institutions are included, e.g. centre for social work and health facilities.

Scholarships, loans, accommodation and food – these support measures are systematically implemented so that the support to pupils and students from vulnerable groups is comprehensive. Of the total number of scholarships and loans, MOESTD allocates up to 10% for students and up to 10% for pupils from vulnerable social groups. In the case of students, these measures also include exemption from tuition fees, as well as measures that student centres within their accommodation capacities should specifically determine (up to 10%) for this purpose. Results: One of the results of scholarships for secondary school students is the reduction of dropouts - a decrease of 7% and more to 3%, and significantly increased the educational achievements of scholarship students, especially girls. The Ministry awarded 176 scholarships from the budget of the Republic of Serbia for Roma students who achieve excellent results in the 2015/16 school year.

The amount of the monthly scholarship is RSD 5400, and 65% of the scholarships were awarded to Roma girls. In the school year 2016/17, 150 scholarships were awarded, 60% to girls. At the beginning of December 2017, the Rulebook on Amendments to the Rulebook on Pupil and Student Loans and Scholarships was adopted, which established more lenient criteria for awarding scholarships and loans to members of vulnerable social groups. 303 scholarships were awarded to Roma students, of which 63% were awarded to Roma girls. As for the academic year 2018/19, the results of the competition will be known in early December 2018.

The affirmative measure of enrolment in secondary school is defined by the Rulebook on enrolment in secondary school, which is adopted for each school year. This measure enabled greater inclusion of students from deprived backgrounds in continuing education.

Since 2017, in accordance with the Action Plan for the implementation of the Education Strategy until 2020, the Ministry of Education, Science and Technological Development has worked on educational reform, primarily through the preparation of new curricula for primary education. The curricula are outcome-oriented and should ensure the development of interdisciplinary competencies, one of which is "Responsible participation in a democratic society", which is recognized in the outcomes related to respect for human rights and liberties. Within the new curricula of the elective programme *Civic Education*, the goal of teaching and learning is for the students to become aware of their rights and responsibilities by studying the basic principles, values and procedures of civil society, sensitive to the needs of individuals and the community and make them ready to actively participate in the community by respecting democratic values. Within other subjects, in accordance with their possibilities, outcomes related to respect for gender equality, diversity and intercultural dialogue are introduced. Respect for democratic values and procedures, responsible, humane and tolerant behaviour in society, sensitivity to social injustice, cooperation and teamwork are some of the outcomes related to human rights, which are found in the curricula.

⁶ Which calls on states to "substantially expand globally the number of scholarships available [...] for enrolment in higher education, including vocational training and information and communications technology, technical, engineering and scientific programmes".

Studies enrolment of persons with disabilities and members of the Roma national minority is done by applying an appropriate programme of affirmative action measures. When enrolling in studies of several years, students who are enrolled on the basis of affirmative action programmes in the status of students financed from the budget, do not rank with other students, but retain budget status if they achieve 36 ECTS, in accordance with the Law on Higher Education. These students also exercise the right to meals in student cafeterias and accommodation in student dormitories, in accordance with the Law on Pupil and Student Standards and the annual competition for admission of students of higher education institutions in the Republic of Serbia to institutions providing food and accommodation for students.

- 1.3 Please indicate the actions taken and planned in your country to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners (including girls and women, the economically and socially marginalized, people with disabilities and other vulnerable groups) in learning processes (several items could be ticked/mentioned):

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|---|---|
| ☐ <u>Providing financial incentives and fellowships</u> | ☐ <u>Providing auxiliary assistance</u> |
| ☐ <u>Providing positive or affirmative action measures</u> | ☐ <u>Adapting education infrastructure</u> |
| ☐ <u>Ensuring inclusion in mainstream schools for all learners</u> | ☐ <u>Adapting curricula and methods</u> |
| ☐ <u>Training teachers on inclusive education</u> | ☐ <u>Providing language classes to newcomers (e.g. refugees)</u> |
| ☐ Ensuring gender parity in science, technology, engineering and mathematics (STEM) and technical and vocational training (TVET) DA LI IMAMO | ☐ <u>Eliminating administrative barriers to education⁷</u> |
| ☐ <u>Providing re-entry programmes for young mothers</u> | ☐ <u>Providing flexible learning pathways</u> |
| ☐ <u>Eliminating all barriers for pregnant girls or young mothers in education</u> | ☐ <u>Valuing diversity in schools</u> |
| ☐ Other: | ☐ <u>Combating stereotyping and stigmatisation</u> |

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- Please elaborate further on the measures taken, including those to ensure *gender equality and the empowerment of girls and women in and through education*:

Since 2017, in accordance with the Action Plan for the Implementation of the Education Strategy until 2020, the Ministry of Education, Science and Technological Development has started working on the educational reform, primarily through the preparation of new curricula for primary education. The programmes are outcome-oriented and should ensure the development of interdisciplinary competencies, one of which is "Responsible participation in a democratic society", which is recognised in the outcomes related to respect for human rights and liberties. Within the new programmes of the elective programme *Civic Education*, the goal of teaching and learning is for the student to become aware of his rights and responsibilities by studying the basic principles, values and procedures of civil society, and make them sensitive to the needs of individuals and the community and ready to actively participate in the community by respecting democratic values. Within other subjects, in accordance with their possibilities, outcomes related to respect for gender equality, diversity and intercultural dialogue are introduced. Respect for democratic values and procedures, responsible, humane and tolerant behaviour in society, sensitivity to social injustice, cooperation and teamwork are some of the outcomes related to human

rights, which are found in the curricula.

Within the mandatory professional development, one of the five priority areas of mandatory teacher training, established by the Rulebook on Continuous Professional Development of Teachers, Educators and Professional Associates is: creating a tolerant and non-discriminatory environment for each individual, as well as violence prevention, prevention of discrimination and inclusion of children from socially marginalised groups. Programme contents related to education for democracy and civil society are part of the Curriculum of teaching and learning for primary and secondary schools, and are realised through the curriculum *Civic Education*. This subject has the status of a mandatory elective programme that is chosen for each school year. In 2017, the Institute for the Advancement of Education and Upbringing, in accordance with the Action Plan for the Implementation of the Education Strategy until 2020, prepared new curricula for teaching and learning for primary education and upbringing. The curricula are outcome-oriented and should ensure the development of interdisciplinary competencies, one of which is "Responsible participation in a democratic society", which is recognised in the outcomes related to respect for human rights and liberties. Within the new curricula of the compulsory elective programme for *Civic Education*, the goal of teaching and learning is for the students to become aware of their rights and responsibilities by studying the basic principles, values and procedures of civil society, make them sensitive to the needs of individuals and the community and ready to actively participate in the community by respecting democratic values. Within other subjects, in accordance with their possibilities, outcomes related to respect for gender equality, diversity and intercultural dialogue are introduced. Respect for democratic values and procedures, responsible, humane and tolerant behaviour in society, sensitivity to social injustice, cooperation and teamwork are some of the outcomes related to human rights, which are found in the curricula.

The Catalogue of the programme of continuous professional development of teachers, educators and professional associates for the school year 2018/2019, 2019/2020, and 2020/2021 (<http://zuov.gov.rs/katalozi-programa-stalnog-strucnog-usavrsavanja/>) contains a total of 32 programmes dealing with human rights. In the area of improving competencies for civic values, there are 7 programmes, and 24 programmes aim to improve the capacity of teachers and other professional associates to act in the field of protection against violence and discrimination. Within the Catalogue of Accredited Programmes for Teachers and Professional Associates, there are several accredited seminars. The accredited programme / seminar "ALL OUR IDENTITIES" stands out. So far, the seminar has been realised for 7 times, attended by 140 participants, of whom 12 men and 128 women who are teachers of *Civic Education*, primary school teachers, subject teachers of social subjects in primary and secondary school. The trainings were realised in 2017. Aim of the programme: Inclusion of gender perspective in primary education through direct engagement of teachers, through their empowerment to introduce interventions in teaching content, as well as through changing attitudes about gender roles and gender relations, for further development of fair and sustainable society - Intersectionality, how gender identity intersects with others.

Civic education is recognized by other actors in education and youth as an adequate place for the implementation of smaller projects aimed at introducing a gender perspective, sensitizing young people to the topics of discrimination, inequality. Projects that have been realized / are being realized:

- Science is female (Centre for female studies, Centre for the Promotion of Science);
- Be a man (Centre E8);
- I can say no – Love is not violence (AWC);
- Anti trafficking (ASTRA)

The curriculum of the subject of Civic Education for the 4th grade envisages the realisation of topics related to the choice of a university, continuation of career (after secondary vocational school).

Training of teachers, educational inspectors and advisors on the application of the Rulebook on detailed criteria for recognizing forms of discrimination by an employee, child, student or third party in an educational institution has been implemented. In 2017, three three-day trainings for teachers and seven two-day workshops for students from two secondary schools and four primary schools were realised on the topic of developing the spirit of tolerance and non-discrimination. In primary schools, the participants were seventh and eighth grade students, while in secondary schools, students from the first to the fourth year were included. At the end of the training, the teachers presented their research activities with their students through public presentations attended by their colleagues, students and parents. As part of a joint project under the working title "Improving the competencies of institutions for prevention and action in cases of discrimination", the implementation of which is funded by GIZ, and in cooperation with the Centre for Interactive Pedagogy, MOESTD implemented ToT training for educational inspectors and advisors on the application of the Rulebook on the action taken by the institution in case of a suspicion or identified discriminatory behaviour and insult to the reputation, honour or dignity of a person (*"Official Gazette of RS"*, no. 85/2018), and online trainings educated 300 teachers and professional associates from preschools, primary and secondary schools. In the next phase of the Project, we plan to continue with the training of employees in education through

the development of a Guide for the implementation of this Rulebook, as well as a Guide for parents, which will be posted on the website of the Ministry.

The new educational paradigm promotes the new concept of teaching and learning that is: outcome-oriented, key and interdisciplinary competencies are introduced, learning reaches the prescribed standards of achievement, project teaching is introduced, new programmes are introduced: Computer science, techniques and technology, physical and health education. **New elective programmes have been introduced for gymnasiums:** Language, media and culture, Individual, group and society; Health and sport, Education for sustainable development, Art and design, Applied sciences, Applied sciences 1, Applied sciences 2, Fundamentals of geopolitics, Economy and business, Religion and civilisation, Methodology of scientific research, Modern technologies. Within the Joint Initiative of the Council of Europe and the European Union "Programme of Support of the European Union and the Council of Europe to the Western Balkans and Turkey", under the project "Promoting Democratic Culture in Schools", a framework of twenty competencies was adopted from the Model of Competences from the group of values, group of attitudes, group of skills and group of knowledge and critical understanding, schools have organised a number of various activities, with pedagogical approaches adequate for the development of competences for democratic culture and creation of a more pleasant, interesting and safer school environment, while strengthening their capacity to eliminate violent, discriminatory and anti-democratic structures in school and school environment, fostering school ethos and providing support to students. Twenty competencies included in the basic model: competencies from the group of attitudes of openness to cultural diversity, as well as other beliefs, worldviews and practices, competencies from the group of skills - cooperation skills and conflict resolution skills, competencies for respect / evaluation of human dignity and human rights, value group, evaluation of democracy, justice, honesty, equality and rule of law, values, responsibility, respect, empathy, evaluation of cultural diversity, civic thinking, knowledge and critical understanding of self and the world, understanding of (inter) cultural differences. Examples of content that leads to democratic competencies can be found in the publication at the link: <http://www.mpn.gov.rs/wp-content/uploads/2019/03/priru%C4%8Dnik-primeradobreprakseDemokratska-kultura-u-%C5%A1kolama.pdf> both in Serbian and English <http://www.mpn.gov.rs/wpcontent/uploads/2019/03/Fostering-a-Democratic-School-Culture-MOESTD-and-COE.pdf>.

The result of this project of the Council of Europe, actively participated by MOSTD, is an incorporation of Guidelines, opinions and recommendations into teaching and learning programmes for the second grade of secondary school in which elements of democratic culture are clearly marked, i.e. contents that support and encourage respect for diversity, active application of tolerance, protection against discrimination within the education system. As a continuation of these activities, in cooperation with the Council of Europe, the MOESTD is implementing the project "Quality Education for All", which takes examples of good practice and promotes continuity in the process of improving democratic culture in schools. A total of 60 schools were involved in the new project activities.

Rulebook on additional educational, health and social support to children, students and adults (*"Official Gazette of RS", No. 80/18*) - Additional support includes rights, services and resources that provide children, students and adults with the ability to overcome physical, communication and social barriers within educational institutions and the community. Additional support is provided, without discrimination on any grounds, to every child, student and adult in order to be included, to participate and progress, as a rule, in a non-segregated educational environment until the end of secondary education, as well as to have unhindered daily activities and quality of life in the community. Additional support is provided within the system of education and upbringing, health and social protection. In accordance with the Law on Primary Education (*"Official Gazette of RS", no. 88/2017, 27/2018 – other law, 10/2019, 27/2018 – other law, and 6/2020*) a school may organise educational work as a special form of work for students on a longer home or hospital treatment, with the consent of the Ministry. For students who cannot attend classes for more than three weeks due to major health problems or chronic diseases, classes are organized at home, i.e. in a health institution. The parent, i.e. other legal representative is obliged to inform the school about the need to organize classes for students in longer home and hospital treatment. The manner of organizing classes for students in longer home and hospital treatment is regulated in more detail by the Rulebook on the manner of organizing classes for students in longer home and hospital treatment (*"Official Gazette of RS", No. 66/18*)<http://www.pravno-informacioni-sistem.rs/SlGlasnikPortal/eli/rep/sgrs/ministarstva/pravilnik/2018/66/3/reg>. In 2015, we had 37 consents for organizing educational work as a special form of work for students in longer home and hospital treatment, in 2016 there were 45, in 2017 there were 53, and in 2018 there were 86 consents. This model of support in education is also used in the cases of students who became mothers during their education.

Law on the Fundamentals of the Education System (*"Official Gazette of RS", No. 88/2017, 27/2018 - other law, 10/2019, 27/2018 - other law and 6/2020*) starting from 2009 prescribes that the citizens of the Republic of Serbia are equal in exercising the right to education and upbringing, regardless of gender, race, national, religious and linguistic affiliation, social

and cultural origin, property status, age, physical and mental constitution, developmental delay and disability, political affiliation or other personal trait. The law prohibits discrimination in education and places special emphasis on the right to education and upbringing of students who need additional support. At the same time, the Strategy for the Development of Education in Serbia until 2020 (*"Official Gazette of the RS"*, No. 107/2012 of 9 November 2012) prescribes that: "People with disabilities and developmental delay, people with learning disabilities and people from disadvantaged backgrounds and social groups (children, adolescents and adults) have a full right to quality education and upbringing while respecting their specific traits (OECD classification). The basic strategic commitment in the education of these persons is an inclusive approach in education that ensures their rights and enables their social inclusion. Educational reforms in the Republic of Serbia aimed at deinstitutionalization and inclusion in regular schools of an increasing number of children in need of additional support have also affected schools for the education of students with learning disabilities and disabilities. The total number of pupils in specialised education has been reduced, as a key target group in these schools are children with more severe and multiple disabilities who were not included in the system and the unjustified enrolment of a large number of Roma children in these institutions has been prevented to a certain extent. All this requires significant changes in the institutions of this type. In addition, specialised classes in regular schools have retained their traditional form, although legal solutions have focused on different practices.

Data provided by the Statistical Office of the Republic of Serbia:

“SPECIAL” EDUCATION	PRIMARY					SECONDARY				
	2013	2014	2015	2016	2017	2013	2014	2015	2016	2017
Number of pupils	5348	4919	4768	4867	4760	2015	2109	1940	1786	1852

Data for the Republic of Serbia show that 0.85% of students are in special education, including special classes in regular schools, in the 2013/14 school year. According to the SORS, the total number of students in primary and secondary schools is 827,218, and according to research on special schools, the total number of students in some form of segregated education is 7028. According to the criteria that exist in the EU (European Agency for Special Needs and Inclusive Education) Serbia is one of the countries with full inclusion with less than 1% of students in segregated education, which includes special schools and special classes. (In 2017 this percentage was 0.97%.) Although the trend of reducing the number of students in a segregated environment has been achieved, in the education system of the Republic of Serbia there are primary and secondary schools and special departments for the education of students with developmental disabilities. While the number of "special" classes in regular schools has significantly decreased in this period (data from the 2015/16 school year show that 119 schools have special classes), all "special" primary and secondary schools, of which there are 48 in Serbia, are still operating.

Measures to support children with learning disabilities and other disabilities through writing of individual educational plans

The need of children / students with learning disabilities and other disabilities for adjusted content of educational work and change of the requirements is realised through the obligation to develop individually tailored educational plans. Determining the right to IEP and its application are regulated by the new Rulebook on detailed instructions for determining the right to an individual educational plan, its application and evaluation (*Official Gazette No. 74/18 of 5 October 2018*).

In the academic year 2017/18 there were 14046 IEP in total - IEP1(8149) IEP2 (5897) – in regular schools, and 198 IEP1 and 2935 IEP2 (3133 in total) in schools for the education of students with developmental disabilities (data from the information system “*Dositej*”).

Additional support measures that fall within the scope of work of the Commission for determining the need for additional educational, health and social support for children, students and adults:

1. Additional support measures which, in accordance with the regulations, are implemented on the basis of the Commission's opinion:

- (1) obtaining subsidies for attending preschool education programs for children with developmental disabilities
- (2) postponing enrolment in the first grade of primary school for one year, exceptionally and with additional explanation, when it is in the best interest of the child;
- (3) adoption of an individual educational plan (IEP2), which implies adjustment of the goals, content and manner of realization of the teaching and learning programme and the outcome of the educational work, i.e. changes of the teaching and learning plan;
- (4) sending the child to a development group in a preschool institution, i.e. to a school for the education of students with developmental disabilities;
- (5) hiring an educator, teacher or professional associate, who is employed in the school for the education of students with

developmental disabilities and other disabilities to support the school in the system of regular education and upbringing.
(6) (6) exercising the right to increase child allowance.

2. Recommended additional support measures based on the Commission's assessment:

- (1) providing game-based, didactic and teaching aids in accessible formats and in accessible languages, including sign language;
- (2) providing customized textbooks;
- (3) providing assistive technologies and / or other services of the resource centre for assistive technologies: alternative ways and means of communication, customised keyboards, touch screens, customised mice, special software, timers, clocks, dictaphones, etc. and training on their use;
- (4) providing training for teachers, educators and professional associates directly engaged in educational work in order to acquire specific skills and strategies for working with children, students and adults, for the use of Braille, sign language, other alternative means of communication, independent movement, use of assistive technology, etc.;
- (5) providing training to the parent or legal representative, in order to acquire knowledge, skills and strategies to support the child, as well as to use assistive technologies and alternative means of communication (e.g. sign language, Braille, etc.);
- (6) adapting the environment in accordance with the needs of the child, student and adult: access and interior space of the institution whose services the child, student or adult uses, by installing a ramp, handrail, installing an elevator, adjusting toilets, adjusting the access paths, to help move independently; by placing a lamp, signpost, name on the door with symbols, a map of the space, placing sound and light signals, etc. - in accordance with the regulations governing the accessibility of public spaces;
- (7) providing support to experts in a particular field, in accordance with the needs of the child, student and adult;
- (8) providing priority in achieving specialist examination or treatment; ensuring that the physiotherapist and occupational therapist, in cooperation with the home treatment service, go on home visits as indicated;
- (9) providing funds for financing the costs of recreational classes, excursions, cultural, sports and other activities organized by the institution for children, students and adults;
- (10) providing transportation for a child, student and adult who cannot use public transport, and if necessary, their companion, to attend education or use other social and health care services, regardless of the distance from the place of residence;
- (11) financing the costs of day care meals in the central or other school in the local community, for the child and student beneficiaries of the right to financial social assistance

3. Other measures from the system of education, health and social protection about which the Commission informs the parent, i.e. the legal representative and the adult and refers them to the competent institutions:

- (1) ensuring that the language barrier is overcome for a child, student and adult to whom the language of instruction is not his/her mother tongue;
- (2) organizing educational support in case of a long absence from school, in order to make up for what he/she missed or ensuring the continuity in the education of students and adults;
- (3) providing a personal companion to the child, i.e. a personal assistant to an adult student in accordance with the prescribed standards of services, provided that they are included in the educational institution, until the end of regular schooling, including completion of secondary school.
- (4) exercising the right to an increase in the child allowance or the increased allowance for assistance and care of another person.
- (5) provision of aids (cochlear implant, hearing aid, wheelchair, Braille machine, etc.);
- (6) providing psychosocial support services to the family through counselling, therapeutic and social education and other innovative services in the community;
- (7) and other rights and services.

Based on the perceived needs for support of children, students and adults, the Commission recommends other types of support that are not listed in the rulebook, but which will contribute to the educational and social inclusion of children, students and adults. One of the measures to support the participation **in education of children and students from vulnerable groups** is individualization and an individual education plan (IEP). According to the Law on Secondary Education (Article 76), a child and student and an adult who, due to social deprivation, developmental disabilities, other disability, learning difficulties, risk of early school leaving and other reasons need additional support in education, the institution provides elimination of physical and communication barriers, adjusting the manner of realization of the school

programme and development, adoption and realization of an individual educational plan..

As an additional support for the equal participation of children from vulnerable groups in education, **the procurement and use of assistive technologies (AT)** and the use of **adapted teaching aids in teaching**, as well as the training of students and teachers for the use of resources, have been recognized. In accordance with the Rulebook on adjusting the content and / or format of textbooks, which regulates more detailed conditions regarding the procedure of preparation, approval, publishing and financing of adapted textbooks and textbook set for the academic year 2017/18, 6948 textbook units were adapted, of which 642 in Braille, 866 with an enlarged font, 4515 in electronic format and 925 in audio format. 674 students received customized free textbooks.

MOESTD actively participated in the creation of measures and activities in the field of education in the **Strategy for Social Inclusion of Roma Men and Women (2016-25)** and the **accompanying Action Plan** for its implementation. With the realisation and monitoring of the effects of measures in the field of education defined by these two documents, the MOESTD is continuously improving the access and quality of education for the members of the Roma community. Measures to support members of the Roma national minority that are part of the Roma Strategy include all levels of education. Increasing the coverage of preschool education, especially children from vulnerable social groups, is one of the strategic priorities of the Republic of Serbia in the field of preschool education. Current data on the coverage of children indicate that 55.4% of preschool children in Serbia are covered by preschool education programmes. The Ministry recognizes the importance of upbringing and education at an early age and works continuously, in cooperation with various actors, to create conditions for improving the availability, equity and quality of preschool education:

1. A number of bylaws have been adopted to support the development of the quality of practice of preschool institutions (new Basics of preschool education programmes; Standards of competencies for the profession of educators and their professional development; closer conditions for establishing, starting to work and performing of activities of preschool institutions; institution work quality standards);
2. support for the implementation of projects and initiatives in the function of achieving strategic priorities in the field of preschool education.

Effects of support measures implemented by MPNTR for improving the education of Roma children:

In addition to affirmative enrolment in the preparatory preschool programme and enrolment in primary school, MOESTD continues with measures to support the Roma community through scholarships and affirmative enrolment in secondary school and higher education institutions founded by the Republic of Serbia. In the period from May 2019, the Competition was launched for awarding scholarships to secondary school pupils of Roma nationality for the academic year 2019/20 under the project "Development, implementation and monitoring of a sustainable state mechanism for awarding scholarships to Roma secondary school students" (IPA 2014). This competition will include 500 Roma students who finished the previous grade with general achievement, i.e. with an average grade of at least 2.00 to 5.00 and that they have at least a good grade for conduct (3). The IPA 2014 project will retain about 180 REF / KfW beneficiaries of scholarships who have earned the right to renew their scholarship this school year. The beneficiaries of scholarships will be mentored by teachers, i.e. the REF/KfW programme will hire up to 200 mentors to monitor the progress of Roma pupils in education.

Table 1. Overview of awarded scholarships in the past 5 academic years:

Academic year	MOESTD/Budget of the Republic of Serbia	MOESTD in cooperation with international organisations	<u>TOTAL</u>
<u>2015/16</u>	176 scholarships – condition: Excellent grade average - 65% girls	510 – grade average from 2.5 to 3.5 68% girls	<u>686</u>
<u>2016/17</u>	150 scholarships – excellent grade average - 60% girls	510 -grade average from 2.5 to 3.5 65% girls	<u>660</u>
<u>2017/18</u>	303 scholarships – very good and excellent grade average 63% girls	REF⁸ 500 - grade average from 2.5 to 3.5 67% girls	<u>803</u>
<u>2018/19.</u>	547 scholarships very good and excellent grade average 60% girls	REF- 303 grade average from 2.5 to 3.5	<u>850</u>

⁸ REF – Roma Education Fund

<u>2019/20.</u>	704 pupil scholarships, 1 pupil loan		<u>704</u>
Scholarships for 3.703 Roma pupils, of whom 65% are girls			

The programme of affirmative enrolment measures for Roma pupils in secondary school – was introduced in 2003, and has been systematically realised since 2005. **So far, there have been 10,533 enrolled pupils (of whom 55% are girls).** The importance of this measure is its systemic character. The adoption of the "Rulebook on criteria and procedure for enrolment of pupils - members of the Roma national minority in secondary school under more favourable conditions in order to achieve full equality" in February 2016, which has now become part of the "Rulebook on enrolment in secondary school", completed the process systemic regulation of this type of support. By monitoring the implementation of the Affirmative Action Programme for enrolment of Roma pupils in secondary school under more favourable conditions, it was established that in the academic year 2019/20 2009 pupils of Roma nationality were enrolled through the affirmative measure, of which 56% were Roma girls. More than 65% of those enrolled through affirmative action, who are beneficiaries of scholarships and have mentoring support, complete secondary education.

Academic year	Number of enrolled	% are girls
2016/17	1713	52%
2017/18	1696	52%
2018/19	2220	56%
2019/20	2209	57%

The affirmative action for enrolment in higher education institutions dates back to 2003/2004, a total of 1743 students have been enrolled so far (51% are girls).

Academic year	Number of enrolled	% are girls
2016/17	182	49%
2017/18	154	55%
2018/19	120	51%

Pedagogical assistant as a measure of support:

The Rulebook on pedagogical and andragogical assistants ("Official Gazette of RS", No. 8772019) was adopted, which regulates the job description, qualifications/education level, additional knowledge / exams / work experience of pedagogical assistants. **In the academic year 2019/20, a total of 261 pedagogical assistants, 229 in primary schools and 31 pedagogical assistants in preschool institutions were hired in 2006.**

- Please indicate whether your country has adopted and reviewed legislation related to the minimum age for marriage so that it conforms to international standards (18 years):

Please note that child marriage is a discriminatory practice as often girls can marry at a younger age than boys. Child marriage violates the child's right to education as they are more likely to drop out of school and children who are not in school are more likely to get married.

Yes ☐ No ☐

Please provide reference to the relevant laws and provisions:

The Ministry of Education, Science and Technological Development is actively working to promote and improve human rights, with a special focus on gender equality, vulnerable and minority groups. Prevention and suppression of violence is one of the topics that is highly positioned on the work agenda of this institution. The Strategy for the Development of Education in Serbia until 2020, adopted by the Ministry in 2012 ("Official Gazette of the RS", No. 107/2012), prescribes measures to ensure equality of all citizens in the right and the possibility of attending pre-university and university

education. A connection was identified between changes and the quality of acquired education, but there was also the impact that should be achieved by greater gender equality and greater social inclusion of all marginalized groups. Therefore, the development of lifelong learning and mass adult education are of particular importance as a mechanism for structural adjustment of the workforce to the new requirements of the labour market. Work has been started on the preparation of a new strategic document with an accompanying action plan that will cover the period until 2030. In the Republic of Serbia, girls and boys, young women and men, older women and men, are provided with equal access to education at all levels. There are no differences in schools and school subjects in terms of accessibility for girls and boys. Regarding primary education in the Republic of Serbia, there are no significant differences between the number of boys and girls enrolled in the first grade of primary school - 49% are girls, 51% are boys. Enrolment policy for primary school, curricula, assessment, human resources and provision of additional support are defined in the manner to include adaptation to the educational needs of students and equal access without discrimination. However, the data show that the educational success of girls is much higher than the educational success of boys during the entire primary and secondary education. At the level of secondary education, girls make up a small majority, and gender inequality in education is more reflected in segregation according to educational profiles, which indicates the maintenance of patriarchal patterns of women's and men's occupations. The number of boys finishing three-year vocational secondary schools is two times higher than the number of girls. Girls are still more numerous in the areas of education: textiles and leather, personal services, chemistry, non-metals and graphics, and health and social protection. Among students completing a four-year general education (gymnasium), there are more girls (58%) than boys (42%). Also, girls are among the students who complete secondary vocational four-year schools (52% of girls and 48% of boys). The boys are more numerous in the fields of: electrical engineering, mechanical and metal processing, geodesy and construction, traffic, forestry and wood processing, and geology and mining. For the PISA test in Serbia there were 8.442 15-year olds who were mostly first-grade secondary school pupils. Apart from mathematical literacy, reading and scientific literacy, the pupils took a test in financial literacy and general competences for the first time. The results of this international test related to the achievements of pupils show that in Serbia the average achievement on the scale of mathematical literacy is 448 points, on the scale of reading it is 439, on the scale of scientific literacy it is 440 points, while the average achievement in OECD countries is around 500 points. The achievements of students from Serbia, compared to other countries in the region, are better than the achievements of students from Montenegro, Northern Macedonia and Bosnia and Herzegovina, and weaker than the achievements of students from Croatia, Slovenia, Hungary and Poland. The key findings of the study also showed that in relation to the previous PISA cycle, no significant differences in student achievement were observed. PISA - Programme for International Student Assessment - is currently the most comprehensive research in the field of education. The Organization for Economic Co-operation and Development (OECD) first launched this study in 1997.

Preschool education

Table 1. Number of children in preschool institution

	sex	total	6 months-2 years	2-3 years	3-4 years	4-5 years	5-5.5 years	5.5-6.5 years	6.5-7.5 years
REPUBLIC OF SERBIA	male	112595	11455	14517	19181	20561	14219	29889	2773
	female	105972	10882	13791	18246	19507	13163	28024	2359

Source: Statistical Office of Serbia

With the aim of promoting gender equality at the earliest age, MPNTR is implementing the project "Gender Awareness, Prevention of Violence and Discrimination in Kindergartens and Schools" (within the project of the RS Government Integrated Response to Violence against Women and Girls in Serbia II). The project is implemented from 2017-2019 by the Ministry, UNICEF and the Centre for Interactive Pedagogy. The project has a preschool component "Kindergarten as a safe and stimulating environment" and a school component. The preschool component includes 5 preschool institutions from Belgrade, Sombor, Zaječar and Vranje. The first phase involved the initial analysis of the situation in the institutions covered by the project-analysis in 47 educational groups, there were 8 focus groups with parents. Four training modules were created for educators, with the topics of promoting diversity, justice and social inclusion in kindergarten, respect for diversity and identity development. The trainings covered 250 educators. Activities were realised with children and workshops were realised with parents on socio-emotional learning. **960** children of all age groups and 624 parents were covered.

Primary school education

In the Republic of Serbia teaching takes place in 3.350 regular primary schools, 1.134 central and 2.216 satellite units.

Teaching was carried out for 536,528 pupils in total, 478,913 in central and 57,615 in satellite units. A total of 64,361 students completed the first cycle of primary education (4th grade), of which slightly more boys (51.2%) than girls (48.8%), while 69,586 students completed the complete primary school (8th grade) - 51.1% boys and 48.9% girls. Within the project "Gender Awareness, Prevention of Violence and Discrimination in Kindergartens and Schools" (RS Government Project "Integrated Response to Violence against Women and Girls in Serbia II"), training for 30 educational advisors from 16 competent school administrations was realized. Within the school component, the following activities were realized in 2019: Gender awareness, prevention of violence and discrimination in schools. 4 mentoring and 2 partner schools were included (Belgrade, Sombor, Vranje, Zajecar). An online survey "Examining the attitudes of students and school staff on gender-based violence" was conducted in 7 primary schools (Belgrade, Sombor, Vranje and Zajecar) and one secondary school (Vranje). Out of a total of 815 participants, 600 are from primary schools, while 215 are from secondary schools. When it comes to the gender structure, 418 girls participated in the research - 51.29% (309 primary school students and 109 secondary school students) and 397 - 48.71% boys (291 primary school students and 106 secondary school students). There were 5 supervision meetings held between the mentor schools and partner schools. Partner primary schools realised the total of 20 workshops from the Manual "Prevention of Gender-Based Violence" created during the project "Violence-Free School" and 2 actions promoting gender equality. The workshops and actions involved the total of 1025 pupils of primary and secondary schools. In addition to this, workshops for teachers and parents were realized in partner schools aimed at the prevention of gender-based violence. There were also trainings for school teams – 24 participants. Horizontal facility webinar resources were created for the implementation of the programme and the manual on horizontal learning "Schools to schools".

Secondary education

In 509 regular secondary schools, 245,714 students attend classes – 121,776 girls (49.6%) and 123,938 boys (50.4%). Schools / classes for students with disabilities (41) are attended by 1,826 students - 727 girls (39.8%) and 1,099 boys (60.2%). 57,478 students graduated from regular secondary school, and the percentage of girls (49.6%) and boys (50.4%) is almost equal. Over 88% of students completed four-year secondary school (26.5% gymnasium and 61.7% four-year vocational secondary school). Only 11.5% of students completed a three-year vocational secondary school. General secondary education - gymnasium was completed by slightly more than a quarter (26.5%) of all students who completed secondary school and almost three quarters completed vocational secondary school. Observed by areas of work, young people most often complete educational profiles in the field of "economy, law and administration" (14.3%), "health and social protection" (10.5%), "electrical engineering" (10.1%), "trade, catering and tourism" (9.1%) and "mechanical engineering and metal processing" (7.8%). Girls most often completed education for profiles in the fields of "economics, law and administration" (18.5%), "health and social protection" (15.8%) and "trade, catering and tourism" (9.6%), while boys "electrical engineering" (18.3%), "mechanical engineering and metal processing" (13.1%) and "economics, law and administration" (10.2%). *Health education* is taught in secondary schools as an optional activity, and among other topics are: hygiene, mental hygiene, reproductive health protection, addiction and eating disorders, changes in puberty and adolescence and occupational safety that schools plan with their annual work plan and school programmes. The programme is implemented by teachers and professional associates within individual subjects, in cooperation with local health institutions or within projects such as Health Education through Life Skills (with UNICEF) in secondary schools, Creative work with children on drug abuse prevention (with MoH), Safe childhood (with MoI) in primary schools. In the last few years in AP Vojvodina, about a hundred schools under the auspices of the Secretariat for Youth and Sports have been implementing the optional subject Health Education on Reproductive Health at the level of project activities with the support of trained trainers. In the past period, the Ministry of Education, Science and Technological Development has achieved intensive cooperation with the Ministry of Health and the Institute for Public Health "M.J. Batut" on the preparation and implementation of the Strategy against Drugs, the implementation of the INSADA Twinning Project, etc. The Institute of Public Health of Serbia implements programs with a network of 23 regional institutes / institutes of public health through teamwork of health workers and associates from health institutions, educators who conduct health promotional activities in the community, kindergartens and schools. Programme activities are mainly based on providing information and raising awareness on drug use issues. Reports on activities carried out within these programmes are sent to the Institute of Public Health of Serbia, which coordinates the implementation of the programme, provides expert methodological instructions and prepares a report for the Ministry of Health. The Institute of Public Health of Serbia has developed a monitoring system for some activities, especially those carried out by health workers, but the capacity to monitor all preventive activities should be further strengthened. The Institute for the Advancement of Education and Upbringing has prepared the Teaching and Learning Programme for the elective programme for the first grade of gymnasium - *Health and Sports*, as well as the Instruction for the didactic-methodical realisation of this Programme. The goal of learning the elective programme *Health and Sports* is that students, based on studying different aspects of healthy

lifestyle, develop skills, knowledge, attitudes and values that are in function of preserving and improving the health and culture of physical exercise. In order to improve awareness and information about sex education and reproductive health, a series of professional meetings was held aimed at improving the competencies and skills of employees in education for the implementation of content and topics in the field of population education in working with children, youth and their parents. In cooperation with the Embassy of France to Belgrade and the French Institute in Serbia, based on the Memorandum of Cooperation on the prevention of gender stereotypes and all forms of gender-based violence and discrimination, MOESTD announced a competition for high school students "All together for gender equality" “ <http://www.mpn.gov.rs/wp-content/uploads/2019/11/TEKST-KONKURSA-MPNTR-FR-AMB-FR-INST.pdf>.

Career guidance and counselling services, in accordance with the Law on the National Qualifications Framework (*"Official Gazette of RS"*, No. 27/2018), Article 10, provide support to girls and boys, and women and men to achieve mobility through the NQFS levels, which enables the application of the concept of lifelong learning and easier mobility of the workforce. Career guidance and counselling services are provided in accordance with the standards for career guidance and counselling issued by the Minister responsible for education. Career guidance and counselling services are provided by the National Employment Service, JPOA in accordance with the law governing adult education and higher education institutions in accordance with the law governing higher education. The programme of professional orientation, i.e. career guidance and counselling of students is implemented by primary and secondary schools, in accordance with the law governing primary and secondary education and the standards referred to in paragraph 2, Article 10 of the Law on NQFS. Dual education is a model of realization of teaching in secondary vocational education and upbringing through which students with theoretical and practical teaching in school and work-based learning with a relevant employer acquire knowledge, skills, abilities and attitudes according to the qualification standard and the curriculum. After graduating from high school, students acquire all the necessary competencies, which are in line with technological development, and which are necessary for modern innovation progress. By acquiring a certain knowledge, they acquire expertise in the field of work for which they were educated, which provides them with the possibility of employability immediately after finishing school, but also the opportunity to start their own company. After completing a three-year secondary vocational education according to the dual model, students have the right to take the vocational Matura or general Matura exam if the programme for acquiring the competencies required according to the Matura programme has been mastered. Based on the passed vocational Matura exam, pupils may enrol in studies in a scientific, professional or artistic field in which secondary education and upbringing has been acquired, without having to sit the entrance exam, except for the aptitude test, in accordance with the law governing higher education. If the company, which participated in the education of young people, recognizes the potential in a student who attended work-based learning, it may offer him/her a job after finishing his/her education according to the dual model of teaching, which in turn means that the company employs young people who are competent and skilled.

Under the dual model of education, girls have an additionally strengthened access to quality education, skills development and training within 33 educational profiles: Industrial Mechanic, IT Electrical Technician, Basic Construction Works Operator, Motor Vehicle Mechanic, Locksmith - Welder, Network and Facility Installer, Electrician, Logistics and Freight Forwarding Technician, Chef, Baker, Butcher, Food Industry Operator, Travel&Hotel Technician, Computer Design Mechanical Technician, Computer Control Technician (CNC Machine), Mechatronics Technician, Machine Processing Operator, Furniture Manufacturing Operator, Operator for metal processing, Airplane Technician, Air Traffic Technician, Mechatronician for Radar Systems, Air Traffic Rescue Technician, etc. The variable 'gender' has been introduced into the system for monitoring and evaluation of dual education, and in this way gender representation by dual educational profiles is monitored.

Higher education

In the Republic of Serbia, 45,221 students graduated from all higher education institutions and at all levels of study. Of the total number of graduates, 18,488 or 40.9% are men and 26,733 or 59.1% are women. A total of 34,936 students graduated from state and private universities - of which 78.0% or 27,225 students graduated from state and 22.0% or 7,711 students from private faculties. 10,285 students graduated from vocational public and private colleges - of which 90.0% at state college, and 10.0% at private college. As for the method of financing the studies out of the total number of graduated students, 36.4% are budget users, 49.8% are self-financing students and 13.8% are on budget and self-financing. There are more women who graduate from colleges and faculties than men. Among enrolled students, 58% are women, and among graduates 59% (data for 2015). Among graduate students in 2015, women made up more than half in the areas of: Education (87%), Health and social work (73%), Arts and Humanities (71%) and Social Sciences, Business and Law (61%). Men make up the majority of all graduates in the fields of: Engineering, Manufacturing and Construction (65%), Science,

Mathematics and Informatics (54%), Agriculture and Veterinary Medicine (54%) and Services (51%). In most age groups, men are more computer literate than women. Only among the youngest ones (14-24 years) there are slightly more girls/women using computers than boys/men. In the older age groups, men are more numerous among computer users than women. Most internet users are also men.

Prevention of dropout in the education system has been recognised as one of the priority areas of action in providing quality education for all both in the Strategy for the Development of Education in Serbia until 2020, and in a new strategic document prepared by MOESTD for the period 2020-2027. A system for early identification and response was designed and piloted at the local level in order to prevent dropouts from the education system, a protocol was designed at the local level to prevent dropouts from education that connects the school with the centre for social work, interdepartmental commissions, health centres, misdemeanour judges, local governments and other relevant mechanisms and partners at the local level (Roma coordinators, pedagogical assistants, health mediators). The list of trainings of public interest also includes the accredited "Training for early identification of students at risk of dropping out and prevention of dropout". Trainings were realised for improving the competences of primary school teachers for working with blind students, training for planning, implementation and monitoring of measures to prevent dropouts and training for activities to support all students - differentiation of teaching. MOESTD is actively working on the sustainable inclusion of children and students in the education system, with a special focus on girls. In these activities, the Ministry achieves significant cooperation with civil society and international organizations. The Roma Education Fund, in cooperation with the MPNTR, implemented the project "Toy Libraries as a form of support in achieving learning outcomes for Roma children". One of the components includes working with mothers from Roma families who have joined the reading club and the training for responsible parenting. The aim of these activities is to strengthen the Roma family in providing support to children, especially girls, to stay in the education system and as an intervention in preventing early marriages. CSO "Centre for Social Policy" with the support of MOESTD has implemented the project "Mechanisms for preventing dropouts of Roma students from the education system", which aims to reduce dropouts of students from the education system and early school leaving, especially Roma girls and boys and returnees upon the readmission from EU Member States. The project addressed the current response of institutions at the local level regarding the reduction of dropouts from the education system and developed a model of an improved system for early identification and response of institutions at the local level, in order to prevent dropouts from the education system. The focus of the project was Roma students and returnees on readmission from EU member states. Prevention of dropout in the education system is recognized as one of the priority areas of action in providing quality education for all, in the Strategy for the Development of Education in Serbia until 2020, the Strategy for Social Inclusion of Roma Men and Women in the Republic of Serbia for 2016-2025 and the Employment Policy and Social Policy Reform (2016). Some of the results of the project are: conducted research on the functioning of existing mechanisms in local communities to prevent dropouts from the education system; piloted improved system for early identification and response at the local level in order to prevent dropouts from the education system; prepared a protocol at the local level to prevent dropouts from education for stronger cooperation with schools, social work centres, inter-ministerial commissions, health centres, misdemeanour judges, local governments and other relevant mechanisms and partners at the local level (Roma coordinators, pedagogical assistants, health mediators). 10 examples of good practice were selected from local governments throughout Serbia that deal with reducing dropouts from the education system. Training for early identification of students at risk of dropping out and prevention of dropout". The training brought together representatives of 50 selected schools (212 participants, 176 female and 36 male participants) in which there was a high concentration of students from the Roma community who are at increased risk of dropping out of school. The results of the realized trainings include two important aspects of professional development: a. training content and b. way of conducting training. The content of the training refers to various aspects of the dropout phenomenon, a support plan for an individual student, an instrument for identifying students at risk of dropping out. These topics are less known to the participants and are therefore accepted as very useful and have had an impact on increasing teachers' competencies regarding dropout prevention. The manner of realization of the training enabled interactivity and exchange of experiences and good practices among the participants. After the theoretical and practical input, they received in the training, schools became obliged to make an Action Plan for the prevention of dropouts, which will be an integral part of the Development Plan of the institution. In consultation with schools, the moderators provided feedback on possible ways to improve the action plans.

MOESTD is involved in the project "Together towards high school - Support for children from vulnerable groups in the transition to secondary school." The aim of the project is to contribute to increasing the number of students from vulnerable groups who continue their education at the secondary school level. Through this project, teachers and schools are empowered to jointly plan and support students from vulnerable groups in the transition to secondary school or the next level of education, primarily by adjusting the preparation for the final exam and upgrading professional orientation. Strengthening of school and teacher capacities, as well as the capacities of students and parents, took place through

accredited seminars, trainings developed for the needs of the project, regular meetings and support of project associates. In addition, the selected schools received grants in the amount of EUR 3,600, in dinar equivalent, for the implementation of project activities. The project was implemented in 10 selected primary schools located in municipalities / cities where there is an increased need for intervention aimed at increasing the transition of students to secondary schools.

In partnership with the international organisation Save the Children for Northwest Balkans (SCNWB) the MOESTD has conducted an initial, gender-sensitive research on patterns of dropping out and early school leaving of Roma children under the project "Affordable and quality education for Roma girls and boys" (2017-2020). The aim of the initial study is to determine the level of coverage of Roma children in primary education, assess the regularity of primary school attendance, provide an overview of the reasons which make Roma children, especially girls, drop out of school and leave school early, and propose measures to improve this area. Using the instrument for identification of students at risk of dropping out of the education system, 378 students were identified in 16 primary schools for which support was provided in food, school supplies and clothing. A total of 118 employees from 16 elementary schools participated in the trainings. A number of trainings were realised on the work with children/youth to fight prejudices, for tolerance and interculturalism, as well as trainings for planning, implementation and monitoring of measures to prevent dropouts. All schools in this project have adopted action plans for the prevention of dropouts for the academic year 2019/20. Participants in the programme say that the programme helped them to establish a better cooperation with parents, as well as to better understand the difficult living conditions and everyday problems faced by Roma parents. Also, they point out that the parents showed great interest, as well as that the mothers express special satisfaction and enthusiasm. MOESTD will continue with these and other activities aimed at ensuring gender equality and empowering girls and women in and through education.

2. Progress made with respect to implementing the right to education in the context of SDG 4

2.1 Pre-primary education

Pre-primary education is not explicitly provided for in the Convention/Recommendation. However, the international community has increasingly recognized the importance of early childhood care and education (ECCE) over the years. The Committee on the Rights of the Child initially recognized “the right to education during early childhood as beginning at birth” (General Comment 7). This became more explicit with the 2010 Moscow Framework for Action and Cooperation⁹. In the current context of the Education 2030 agenda, under SDG target 4.2, states have now committed to “the provision of at least one year of free and compulsory pre-primary education”.

- Is compulsory and free of charge pre-primary education available in your country?

☐ Pre-primary education is compulsory: Please provide the age of enrolment and duration:

Attending of preschool education programmes in the year before starting school (preparatory preschool programme) is mandatory for all children aged five and a half to six and a half. In accordance with Article 17 of the Law on Fundamentals of the Education System ("Official Gazette of the RS", No. 88/17, 27/18 - other law, 10/19, 27/18 - other law and 6/20), it is prescribed that all children are enrolled in a preschool institution in the year before starting school. The same article of this law stipulates that a parent, i.e. other legal representative whose child is not included in the educational work in a preschool institution, is obliged to enrol a child aged five and a half to six and a half in a preschool institution, i.e. a primary school that implements the preschool programme, provided that he has the right to choose a preschool institution, i.e. primary school. A preschool institution founded by a local self-government unit, i.e. a primary school that implements a preschool programme, and which founder is the Republic of Serbia, an autonomous province or a local self-government unit, is obliged to enrol every child to attend a preparatory preschool programme, regardless of the place of residence of the parent or other legal representative. In accordance with Article 24 of the Law, the preparatory programme for a child before starting primary school, as part of preschool education (preparatory preschool programme) **lasts four hours a day, for at least nine months** and is realised by an educator. Article 22 of the Law on Preschool Education ("Official Gazette of RS" No. 18/10, 101/17, 113/17 - other law and 10/19) stipulates that the preparatory

⁹ Which states that “ECCE is part of the right to education and the main foundation for holistic human development”.

preschool programme is part of the regular full-day or half-day care programme of the preschool institution, realised with children in the year before starting school. The preparatory preschool programme for children who are not covered by the regular programme of the preschool institution is organised in the preschool institution, exceptionally in the school, in accordance with the Law and the statute of the preschool institution, i.e. school.

☐ Pre-primary education is free of charge for all: Please provide the duration:

A preschool institution founded by a local self-government unit, i.e. a primary school that implements a preschool programme, and whose founder is the Republic of Serbia, an autonomous province or a local self-government unit, is obliged to enrol every child to attend a preparatory preschool programme, regardless of the place of residence of the parent or other legal representative in accordance with Article 17 of the Law on the Fundamentals of the Education System (*"Official Gazette of the RS"*, No. 88/17, 27/18 - other law, 10/19, 27/18 - other law and 6/20). Attending the preparatory preschool programme in an institution founded by the Republic of Serbia, an autonomous province or a local self-government unit is free of charge, in accordance with the aforementioned Article of the Law. In accordance with Article 24 of the Law, the preparatory programme for a child before starting primary school, as part of preschool education (preparatory preschool programme) lasts four hours a day, for at least nine months and is realised by an educator. Article 187, paragraph 2, items 1-3) of the said law stipulates that the budget of the Republic of Serbia shall provide funds for: 1) realisation of the preparatory preschool programme in the year before starting school for four hours, at the headquarters and outside the headquarters of the institutions; 2) realisation of the preschool programme for work with children with developmental disabilities and other disabilities; 3) realisation of the preschool programme for work with children on hospital treatment.

Article 22 of the Law on Preschool Education (*"Official Gazette of RS"* No. 18/10, 101/17, 113/17 - other law and 10/19) stipulates that the preparatory preschool programme is part of the regular full-day or half-day care programme of the preschool institution, realised with children in the year before starting school. The preparatory preschool programme for children who are not covered by the regular programme of the preschool institution is organised in the preschool institution, exceptionally in the school, in accordance with the Law and the statute of the preschool institution, i.e. school.

- Please list the laws and policies that ensure the availability of pre-primary education for all and provide information on the difficulties experienced by your government in the realization of access to pre-primary education. Brief quantitative information could be added.

Education Development Strategy in Serbia until 2020 (*"Official Gazette of RS"*, no 107/2012) and the **Action Plan for the implementation of the Education Development Strategy in Serbia until 2020**. The conclusion on the adoption of the Action Plan (together with the text of the Action Plan) was published in the *"Official Gazette of RS"*, No. 16/15.

Law on the Fundamentals of the Education System- ZFES (*"Official Gazette of RS"*, No. 88/2017, 27/2018 - other law, 10/2019, 27/2018 - other law and 6/2020)

Law on Preschool Education (*"Official Gazette of RS"*, 18/2010, 101/2017, 113/2017 - other law, 95/2018 - other law and 10/2019))

In the Republic of Serbia, pre-school education covers children from the age of 6 months until the time they start with primary school. Thanks to the great efforts of local self-government units as founders of preschool institutions, but also the support provided through various project initiatives at the national level, the overall coverage of children with preschool education in the Republic of Serbia increased (32% in 2002, 47.37 in 2009). %, 2011 48.05%, 2012/2013 49.72%, 2014/2015 47.45%, 2015/2016 49.62%, 2016/2017 52.30%, 2017/18 56.04%). The coverage of children with preschool education is very different for children in different age groups (Table 1).

Table 1. Children covered by preschool education

Coverage of Preschool Education	2014/15	2015/16	2016/17	2017/18	2018/19
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From 6 months to 3 years of age	22.80 %	26.40%	27.40%	32.11%	31.2%
From 3 to 5.5 years of age	52.06 %	54.82%	58.94%	61.32%	63.5%
From 4 to 5 years of age	48.87%	53.18%	55.67%	57.53%	60.4%
From 5.5 to 6.5 (PPP)	95.27%	95%	96.57%	98.17%	97.06%
Total (from 6 month to 6.5 years of age)	47.45%	49.62%	52.30%	56.04%	55.4%

While the coverage of children in the year before starting school is traditionally high (Table 2: Children covered by the preparatory preschool programme), a significant growth was achieved when it comes to the coverage of children under 3 years of age (from 22.8% in 2014/15 to 32.11% in 2017/18), as well as when it comes to the participation of children aged 3 to 5.5 years (63.5% of children in 2018/19, compared to 52.06% of children of the same age in 2014/15).

Table 2. Children covered by the preparatory preschool programme

School/work year	Children covered by the preparatory preschool programme
2006/07	64 048 (84.20%)
2007/08	69 728 (88.85%)
2008/09	71 444 (91.80%)
2009/10	69 378 (87.82%)
2010/11	68 049 (87.54%)
2012/13	68 778 (97.3%)
2013/14	64 712 (94.49%)
2014/15	65 491 (95.27%)
2015/16	66 505 (95%)
2016/17	65 794 (96.57%)
2017/18	64 345 (98.17%)
2018/19	65 067 (97.06%)
2019/20	63 773 (97.36%)

Increasing the availability, fairness and quality of preschool education is a permanent strategic commitment of the Ministry. The capacities of the preschool education are increasing, but in order to achieve strategic goals, it is necessary to further expand the existing capacities and optimize the network of preschool institutions in accordance with the needs of children and families in specific local communities. There are big differences in terms of capacities of preschool education between municipalities with different levels of socio-economic development – in richer municipalities there are more preschool institutions, and the average number of children per facility is higher. There is also a big difference when it comes to the number of children in the educational group between different facilities of preschool institutions - that number is higher for facilities located in the administrative centre of the municipality than in settlements outside the administrative centre. As the activity of preschool education is characterized by great diversity and specificity in the field, various project initiatives are used to provide support to local self-government units and the search for solutions which will respect the needs of specific families and opportunities of local communities. The task of the local self-government is to address the needs of children and families in a specific local community, to map children who are not included, to monitor demographic trends and internal migration of the population and to plan sustainable solutions in terms of establishing a network of preschool institutions on its territory. With proactive attitude, applying for various projects and donations, connecting with various stakeholders on the national and local level, change of

purpose and adaptation of the existing space of LSGU to make it acceptable for preschool children care, i.e. realisation of preschool education programmes, development of full-day and half-day programmes in preschool institutions, local self-government units may significantly contribute to improving the coverage, equity and quality of preschool education.
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2.2 Universal primary and secondary education

Article/Paragraph 4(a) of the Convention/Recommendation provides for universal primary and secondary education. In the context of the Education 2030 agenda, SDG target 4.1 calls on States to provide “12 years of free, publicly funded, inclusive, equitable, quality primary and secondary education – of which at least nine years are compulsory.”

Primary education

- Is primary education compulsory in your country?

☒ **Yes** ☐ **No**

Please indicate the current duration period of compulsory education and the age of enrolment:

In this part, you may also provide information on the difficulties experienced by your government in the realization of universal access to primary education. Quantitative information could be added.

Education Development Strategy in Serbia until 2020 (*"Official Gazette of RS"*, No. 107/2012) and Action Plan for the implementation of the Education Development Strategy in Serbia until 2020. The conclusion on the adoption of the Action Plan (together with the text of the Action Plan) was published in the *"Official Gazette of RS"*, No. 16/15.

Law on Fundamentals of the Education System (*"Official Gazette of RS"*, No. 88/2017, 27/2018 - other law, 10/2019, 27/2018 - other law and 6/2020)

Law on Primary Education (*"Official Gazette of RS"*, No. 55/13, 101/17, 27/18-other law and 10/19)

Article 5 of the Law on Primary Education (*"Official Gazette of RS"*, No. 55/2013, 101/2017, 27/18 and 10/19) defines that primary education is mandatory as well a preparatory preschool programme as part of the mandatory education. Article 30 of the same Law prescribes the duration of primary education and upbringing, so that it is realized in the duration of eight years in two educational cycles, and together with the preparatory preschool program, compulsory education in the Republic of Serbia lasts for nine years.

Article 55 of the Law stipulates that the first grade of primary school is enrolled by every child who is at least six and a half and at most seven and a half years old by the beginning of the school year, and that exceptionally, when it is in the best interest of the child, school can postpone the enrolment of the child can for a year based on the opinion of the interdepartmental commission, containing the evidence of the need to postpone and proposing measures of additional educational, health or social support to the child in the period before starting school.

Therefore, compulsory education in the Republic of Serbia lasts from five and a half years / six and a half years to fourteen and a half / fifteen and a half years, i.e. a total of nine years.

The function of primary education is to provide quality education for all, by achieving general principles, goals and outcomes of education and enable the development of key competencies for lifelong learning, which makes primary education the foundation of the entire education system. Functional knowledge and skills, motivation for learning, attitudes and values necessary for the formation of national and cultural identity are necessary for active and constructive life in modern society.

The intention of the strategic documents is to continue to improve the system of primary education in the new strategic cycle in a way that will provide quality education for all, regardless of where the school is located, i.e. where education is carried out.

- Is primary education available free of charge to all?

☐ **Yes:** Please provide the duration and indicate the extent to which it is.

For this, please list the laws and policies that ensure the universal and free availability of primary education and indicate whether direct and indirect costs are charged (such as tuition fees, exam fees, schools supplies, uniforms, transport costs and compulsory levies on parents).

Article 4 of the Law on the Fundamentals of the Education System stipulates that in an institution founded by the Republic of Serbia, an autonomous province or a unit of local self-government, the following shall be provided free of charge:

- 1) upbringing and education of children in the year before starting school, in accordance with this and a special law;
- 2) primary education and upbringing of students and adults, in accordance with this and a special law;
- 3) secondary education of regular and irregular students, under equal conditions, in accordance with this and special law.

A regular student is a person enrolled in the first grade of secondary education and work-based education under 17 years of age, and an irregular student is the person over 17 years of age.

The Ministry of Education, Science and Technological Development, in accordance with the Decision of the Government of the Republic of Serbia on financing the purchase of textbooks from the budget of the Republic of Serbia, procures free textbooks for students from socially vulnerable categories, as follows: students from socially / financially vulnerable families (beneficiaries of social assistance), students with developmental disabilities and other disabilities who acquire primary school education and upbringing according to an individual educational plan and students who do not acquire primary school education and upbringing according to an individual educational plan but do have the need to adapt (enlarged font, Braille, electronic format), as well as for primary school students who are the third or every next born child in the family if previously born children are in the education system of the Republic of Serbia. In accordance with this, about 15% of primary school students receive free textbooks for:

- (1) in the first cycle of primary education, for the subjects of Mathematics, Serbian Language / Mother Tongue, World Around Us, Nature and Society, and a foreign language as a compulsory subject;
- (2) in the second cycle of primary education, for the subjects of Mathematics, Serbian language and Literature / Mother Tongue, i.e. Serbian Language / Mother Tongue, first foreign language, Geography, History, Chemistry, Physics and Biology.

☐ No: Is your country already engaged in legal and policy reforms to work towards universal and free primary education?

☐ Yes ☐ No

- Please briefly provide information on the reforms taken:

Secondary education

In this part, please provide information on the general availability and accessibility to all of secondary education, including technical and vocational secondary education and training in your country.

- Is secondary education (middle/high) available free of charge?

☐ **Yes:** Please provide the duration and describe the extent to which it is.

Please list the laws and policies that ensure the free availability of secondary education and describe whether direct and indirect costs are covered (such as tuition fees, exam fees, school supplies, uniforms, transport costs and compulsory levies on parents).

Secondary education is free in state schools and available to all interested children, although it is not compulsory.

The state covers the costs of school work and teachers' salaries and transportation of students in accordance with special provisions. Uniforms and meals are not included as an expense covered by the state.

Duration of secondary education is 3 or 4 years, depending on the programme.

There are also one-year and two-year special programmes for special categories of students.

☐ **No:** What are the measures your government intends to take to ensure free secondary education?

- Is secondary education (middle/high) compulsory in your country?

☐ Yes ☐ No

- Please provide details on its implementation and indicate the duration of compulsory secondary education and the age of enrolment:

In this part, you may also provide information on the difficulties experienced by your government in the realization of universal access to secondary education. Quantitative information could be added.

It is not obligatory, but such initiatives exist. Studies have been conducted to assess the feasibility of such a measure. A necessary precondition is a change in the Constitution in which secondary education is not listed as compulsory.

- Indicate whether your country has adopted and reviewed legislation related to the minimum age of entry into employment so that it is aligned with the end of compulsory education:

Please note that minimum age labour laws and those related to compulsory education interdependent and mutually reinforce each other. If the minimum age of employment is below that of compulsory education, the child is at risk of dropping out of school to work and therefore not completing compulsory education. On the other hand, if compulsory education is lower than the minimum age of employment, once the child has completed compulsory education, the door is open to child exploitation and the violation of labour laws.

Yes ☐ No ☐

- Please provide reference to the relevant laws and provisions:

The minimum number of years to start working in Serbia is 15. This is in line with the compulsory years of schooling, so there is no danger of children leaving compulsory primary school due to employment.

Reference Regulations in the field of labour and employment, Labour Law.

2.3 Higher education

Article/Paragraph 4(a) of the Convention/Recommendation provides for higher education. Ensuring higher education is essential to achieve SDG4, both targets 4.3¹⁰, and target 4.4¹¹.

- Please indicate the measures adopted to ensure that there is no discrimination on the grounds prohibited by the Convention/Recommendation¹² to enter and complete higher education, including technical and vocational education and training (several items could be ticked/mentioned):

☐ Constitutional laws and/or legislation prohibit discrimination in higher education, including technical and vocational education and training

Law on Higher Education ("Official Gazette of RS", no 88/17, 27/18- other law, 73/18, 67/19 and 6/20-other law)

☐ Regulations prohibit discrimination in higher education, including technical and vocational education and training

Professional manual for carrying out the enrolment in the first year of study programmes of graduate and integrated studies at higher education institutions founded by the Republic of Serbia for the academic year 2020/2021 ("Official Gazette of RS", no. 78/20)

☐ Policies and programs aim to eliminate and prevent discrimination in higher education, including technical and vocational education and training

Affirmative enrolment programme for persons with disabilities

Affirmative enrolment programme for members of the Roma national minority

Guidelines for adapting the entrance exam for persons with disabilities who wish to enrol in studies within the programme of affirmative measures for the enrolment of persons with disabilities

☐ Other:

- Please provide a brief description of the relevant legal, regulatory or policy texts including measures on:

¹⁰ Which calls on states to "ensure equal access for all women and men to affordable and quality technical, vocational and tertiary education, including university".

¹¹ Which recommends to "substantially increase the number of youth and adults who have relevant skills, including technical and vocational skills, for employment, decent jobs and entrepreneurship".

¹² See: Article/Paragraph 1(1).

- ➔ *Non-discrimination in the admission of students to higher education institutions on the grounds prohibited by the Convention/Recommendation*
- ➔ *Non-differential treatment, including of foreign students*

Law on Higher Education ("Official Gazette of RS", No. 88/17, 27/18-other law, 73/18, 67/19 and 6/20-other laws), in the provision of Article 4. paragraph 1, item 7) promotes respect for human rights and civil liberties, including the prohibition of all forms of discrimination in the field of higher education. Article 9 establishes the general right of access to higher education for persons with secondary education. The law promotes gender equality in terms of the composition of the National Council for Higher Education, the Steering Board of the National Accreditation Body and the Commission for Accreditation of Higher Education Institutions, the governing bodies of higher education institutions (Articles 11, 16, 20 and 62). The law prescribes the obligation of the Government to determine an additional number of students whose studies are financed from the budget for the implementation of affirmative action measures, enrolment of persons with disabilities and members of the Roma national minority (Article 100, paragraph 4.) The Law defines that students with disability and the students enrolled based on the affirmative measure who, in the current year, realise a total of 36 ECTS credits shall have the right to be financed from the budget in the following academic year and that they shall retain the status of a student until the expiry of the deadline which is defined as the triple number of academic years required for the realization of the study programme (Article 103, paragraph 5, and Article 109, paragraph 2.) The access to higher education is ensured to foreign nationals under the same conditions applied for the citizens of the Republic of Serbia in terms of previous education, if they know the language of instruction (Article 97, paragraphs 2-4).

- Please indicate efforts made by your government to ensure that higher education is equally accessible to all on the basis of individual capacity and/or is available free of charge (several items could be ticked/mentioned):

Article 4 of the Convention requires states to make "higher education equally accessible to all on the basis of individual capacity". Article 13 of the International Covenant on Economic, Social and Cultural Rights, further adds that this should be pursued by "every appropriate means, and in particular by the progressive introduction of free education".

- ☐ Higher education is generally free of charge
- ☐ Higher education is accessible on the basis of individual capacity as assessed by reference to relevant qualifications and experience

The ranking list of candidates registered for enrolment is based on the success achieved at the previous level of education, the results of exams for testing knowledge, i.e. aptitudes and abilities and, if necessary, on the basis of success in national and international competitions, in accordance with the general act of the higher education institution.

- ☐ Higher education is accessible through financial incentives and scholarships

Each school year, the government passes the decision on the number of students for enrolment in the first year of the study program, which is financed from the budget, for a higher education institution founded by the Republic of Serbia. The government determines an additional number of students whose studies are financed from the budget for the realization of enrolment in studies by applying affirmative measures. In the following years of study, the number of budget students may increase by up to 20% compared to the previous year, in accordance with the decision of the competent authority of the higher education institution.

- ☐ Higher education is accessible through positive or affirmative action measures

The Government determines an additional number of students whose studies are financed from the budget for the implementation of enrolment in studies by applying affirmative action measures

- ☐ Higher education is accessible through credit transfer system between states

ECTS credits can be transferred between different study programmes, in accordance with the criteria and conditions of ECTS credits transfer and appropriate knowledge tests prescribed by the general act of the higher education institution, i.e. the agreement of the higher education institutions.

- ☐ Other:

- Please elaborate on the measures taken and provide brief information on the financial costs to receive education in higher public or private education institutions, if higher education is not free of charge.

In this part, you may also provide information on the difficulties experienced by your government as regards access to higher education and on the progress realized. Quantitative information could be added.

2.4 Adult education and alternative learning

Article/Paragraph 4(c) of the Convention/Recommendation provides for adult education and alternative learning. While SDG4 aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all”, target 4.6 specifically calls on states to “ensure that all youth and a substantial proportion of adults, both men and women, achieve literacy and numeracy”. Furthermore, under target 4.4, states are called “to increase and diversify learning opportunities, using a wide range of education and training modalities, so that all youth and adults, especially girls and women, can acquire relevant knowledge, skills and competencies for decent work and life.”

- Please indicate the efforts made by your government to establish a system of continuing education and equitable access to learning and training opportunities (several items could be ticked/mentioned):

- ☐ Provision of education for persons who have not received or completed the whole period of their primary education
- ☐ Provision of literacy programmes
- ☐ Provision of appropriate learning and life-skills programmes
- ☐ Provision of free of charge learning opportunities
- ☐ Provision of flexible learning pathways
- ☐ Provision of professional training and qualifications
- ☐ Other:

- Please elaborate further on the measures taken:

In accordance with the Law on Education, the Government of the Republic of Serbia issues a Decision on determining the Annual Plan of Adult Education in the Republic of Serbia, based on which priorities in adult education are adopted for a given year, and the report from the previous year is used to monitor the realisation of the previously set priorities. Annual Adult Education Plan (AAEP) consists of a consolidated overview of planned adult education activities based on identified priority educational areas, implemented by relevant institutions and social actors, in order to respond to the defined needs of the local economic environment and the labour market. In preparing the AAEP the Ministry of Education, Science and Technological Development directly and through school administrations obtained data on adult education plans and activities for 2020, from local self-government units, chambers of commerce, employers' associations, National Employment Service, and other relevant ministries, institutions and organisations. The work of the Working Group for the preparation of the Annual Adult Education Plan for 2020, established in the Institute for Improvement of Education, was performed by representatives of the Ministry of Education, Science and Technological Development, Ministry of Labour, Employment, Veteran and Social Affairs, Ministry of Economy, Chamber of Commerce of Serbia, National Employment Service, Serbian Association of Employers, National Academy for Public Administration, TEMPUS Foundation and the Institute for Improvement of Education. The importance and necessity of the adult education system are emphasized through the strategic and legislative framework of adult education policy in the Republic of Serbia, while the Law on Adult Education defines measures for all launched initiatives.

Progress in one of the priorities - improving career guidance and counselling, is shown through the adoption of the Rulebook on standards of career guidance and counselling services in 2019 ("Official Gazette of RS", No. 43/19). Career guidance and counselling standards are part of the public policies applied by state bodies, institutions and other organizations in the field of education, employment, social protection and youth policy, and especially in the field of adult education.

Keeping records of participants has also been raised to a higher level, as evidenced by the Rulebook on the type, name and content of forms and the manner of keeping records and the name, content and appearance of forms of public documents and certificates in adult education ("Official Gazette of RS", no. 89/15, 102 /15).

The program of basic formal adult education is implemented in 65 primary schools on the territory of 16 school administrations. Annually, there are 6246 adults who enrolled in the programme of formal primary education based on the model of functional primary adult education, of whom 384 students attend the programme in the institutions for the execution of criminal sanctions. Special attention is paid to the illiterate and unqualified persons. There are also programmes for retraining the unemployed.

There are 873 teachers who carry out the Programme of formal primary adult education in 65 primary schools. Professional training for the implementation of the FPAE programme is planned for 274 teachers for Module 1 - basic andragogical skills. For Module 2 - training for the application of certain subjects in the Programme of formal primary adult education, the training is planned for 771 teachers. When it comes to andragogical assistants, 36 of them have already been trained in the prescribed manner, while 42 need to

be trained. We expect that after the necessary training of teachers and andragogical assistants, the dropout rate will decrease and that teachers will transfer the acquired competencies to regular classes (defining outcomes, project teaching, digital skills, using the EPALE platform, progress assessment, learning strategies, etc.).

Irregular secondary education for adults, for students older than 17, is realised in 94 secondary schools on the territory of 17 school administrations, for 1304 students per year.

Affirmative measures for enrolment of students, members of vulnerable groups, in secondary school are still being implemented:

- enrolment of Roma students in the first grade of secondary school based on the application of the Rulebook on criteria and procedure for enrolment of students - members of the Roma national minority in secondary school under more favourable conditions in order to achieve full equality ("Official Gazette of RS", No. 12/2016)
- enrolment of adults - older than 17 years on the basis of the Rulebook on criteria and procedure for enrolment of students who have completed the programme of primary adult education in secondary school under more favourable conditions in order to achieve full equality.

The result of these affirmative action measures is that there are about 70 percent of the participants from vulnerable groups.

The plan for enrolment of adults in retraining, additional training and specialization programmes is made based on school proposals submitted by the competent school administration and the insight into the relevance of proposals on the labour market. Ministry of Education, Science and Technological Development has approved a number of vacancies for special educational profiles for each school. The approved number for enrolment of adults in retraining programs is 14,519, for additional training programs 8,763 and specialization 3,590 adult students in the current year. Employees are encouraged to strengthen their competencies in a number of accredited training programmes aimed at strengthening competencies.

Accordingly, this year the plan is to implement these programmes on the territory of 18 school administrations for a total of 26,872 students. These activities are financed by the students themselves.

When it comes to non-formal education, the Rulebook on detailed conditions regarding programmes, staff, space, equipment and teaching aids for acquiring the status of a publicly recognised organiser of adult education activities (*"Official Gazette of RS", No. 89/15*) prescribes the conditions regarding staff to carry out adult education activities. Article 7, paragraph 4 of this Rulebook prescribes the obligation of staff engaged in publicly recognised organisers of adult education activities to acquire professional competencies for working with adult programmes within six months from the day of acquiring the status of a PRO, through professional development programmes.

According to the annual plan of adult education, training of professional staff of PRAO (lecturers, trainers, leaders, instructors, professional associates) is planned for the prescribed competencies in total: Module 1 - basic principles, characteristics and styles of adult learning styles - training for 223 associates; Module 2 - motivation in adult learning -

training for 215 associates; Module 3 - education group management - training for 217 associates; Module 4 - methods and techniques of interactive educational work with adults - training for 233 associates; Module 5 - methods and techniques for assessing student achievement - training for 196 associates; Module 6 - planning, organization and individualization of the educational process, including persons with disabilities - training for 201 associates; Module 7 - evaluation of the educational process - training of 195 associates.

The current situation is such that 57 institutions with a total of 203 training programmes intended for adults (14 secondary vocational schools, 9 institutions for adult education such as workers', people's and open universities and 34 other organizations) have received the status of PRAOs.

Training programmes for non-formal adult education for acquiring professional competencies are conducted on the basis of labour market analysis in Serbia, on the basis of forecasted needs of employers and on the basis of priorities defined by the national strategy. Accreditation for training programmes is given to non-formal education institutions - companies, other organizations (95 programmes), people, workers and open universities (65 programmes) and secondary vocational schools (43 programmes). The number of lecturers included in these programmes on an annual basis was 144, while the number of students who attended these courses, programmes and trainings was 2251.

The National Employment Service and the Chamber of Commerce of Serbia organise non-formal education programmes in order to develop and improve the knowledge, skills and competencies of unemployed persons to work in certain jobs, i.e. to increase the level of their employability.

The process of recognition of prior learning is established and adjusted, in accordance with the Law on National Qualification Framework and the Law on Education.

2.5 Quality education provision and learning environment

Articles/Paragraphs 2, 4(b) and 5(b) of the Convention/Recommendation provide for quality education. Quality education is fundamental to achieve all targets of SDG4. It is also particularly highlighted in SDG target 4.a that recommends states to “build and upgrade education facilities that are child, disability and gender sensitive and provide safe, non-violent, inclusive and effective learning environments for all”.

- Please indicate the measures taken by your country to ensure equivalence in all educational institutions with regard to (several items could be ticked/mentioned):

- ☐ Establishment of minimum norms and standards in education
- ☐ Establishment of conditions relating to the quality of the education provided (e.g. infrastructure, learner/teacher ratios, teaching and learning materials, use of ICT)
- ☐ Adoption of legal or regulatory provisions to ensure that children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools).

- Please elaborate further on the measures taken:

To provide such quality assessment, please take into account all educational institutions of the same level. You may include information on policies, protocols or codes of conduct.

The process of accreditation - verification of secondary schools for performing a certain activity is based on standards. The school cannot start working without an appropriate solution.

A system of external evaluation of school work has been established and Institute for Education Quality and Evaluation has been established.

2.6 Education personnel

Article/Paragraph 4(d) of the Convention/Recommendation provides for the education personnel. This corresponds to SDG target 4.c which is entirely devoted to the teaching profession as it calls on states to “substantially increase the supply of qualified teachers”.

- Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels in your country and regarding the training for the teaching profession (several items could be ticked/mentioned):

- ☐ Teachers' average salaries are competitive or at least comparable to those paid in other professions requiring similar or equivalent qualifications (at all levels)
- ☐ Initial training and continuous professional development are provided
- ☐ Minimum standards and qualifications are required for the teaching profession
- ☐ Measures taken to strengthen the social status and attractiveness of the teaching profession
- ☐ Performance monitoring systems
- ☐ Measures taken to increase women in leadership positions in education
- ☐ Other:

- Please briefly elaborate further on the measures taken:

The Catalogue of the programme of continuous professional development of teachers, educators and professional associates for the school year 2018/2019, 2019/2020, and 2020/2021 (<http://zuov.gov.rs/katalozi-programa-stalnog-strucnog-usavrsavanja/>) contains a total of 32 programmes dealing with human rights. In the area of improving competencies for civic values, there are 7 programmes, and 24 programmes aim to improve the capacity of teachers and other professional associates to act in the field of protection against violence and discrimination. Within the Catalogue of Accredited Programmes for Teachers and Professional Associates, there are several accredited seminars. The accredited programme / seminar "ALL OUR IDENTITIES" stands out. So far, the seminar has been realised for 7 times, attended by 140 participants, of whom 12 men and 128 women who are teachers of *Civic Education*, primary school teachers, subject teachers of social subjects in primary and secondary school. The trainings were realised in 2017. Aim of the programme: Inclusion of gender perspective in primary education through direct engagement of teachers, through their empowerment to introduce interventions in teaching content, as well as through changing attitudes about gender roles and gender relations, for further development of fair and sustainable society - Intersectionality, how gender identity intersects with others.

- Have there been instances of discrimination as regards the training for education personnel in your country?

- ☐ Yes: Has your government addressed this issue?

☐ Yes

☐ No

☐ No

2.7 Respect for human rights and fundamental freedoms

Article/Paragraph 5(1)(a) of the Convention/Recommendation provides for the respect for human rights and fundamental freedoms. This is covered under SDG target 4.7.¹³ Please note that this section contributes to the general monitoring of Article/Paragraph 5(1)(a) of the Convention/Recommendation and that the consultation on the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms will be used specifically for monitoring SDG4 indicator 4.7.1.

- Please indicate the national efforts taken in directing education to the full development of the human personality and the strengthening of respect for human rights and fundamental freedoms (several items could be ticked/mentioned):

☐ Curriculum includes human rights education

☐ Educational and/or extracurricular activities are organized on human rights education

☐ Other:

The National Framework for Education and Upbringing represents the development of all teaching and learning programmes that include the goals, standards, competencies, outcomes, mission and vision of education and upbringing. New teaching and learning programs for all grades of primary education have brought a paradigm shift in education. Teaching is outcome-oriented, key and interdisciplinary competencies have been introduced, achievement standards, project teaching has been introduced.

The Ministry of Education, Science and Technological Development is actively working to promote inclusion in all processes that contribute to the well-being of society. In the system of education and upbringing, this is realized, above all, through programme contents that refer to education for democracy and civil society. These contents were introduced in the curriculum for primary and secondary schools in the Republic of Serbia in the school year 2001/2002, and are realized through the subject *Civic Education*. Within the teaching and learning programme for the elective programme of *Civic Education* for Primary and Secondary Education, there are thematic units related to gender and any other equality and have the aim to make students recognize various forms of violations of rights, understand their genesis and be ready to oppose them.

As part of the education reform, new Teaching and Learning Programmes for *Civic Education* have been developed, which are outcome-oriented. **The goal** of teaching and learning *civic education* is to encourage the development of a person who is aware of their rights and the rights of others, who is open and sensitive to agreement and cooperation, sensitive to the needs of individuals and communities and ready to actively participate in school life, respecting principles, procedures and values of a democratic society.

Outcomes: Pupils will be able to behave in a way that does not jeopardize the needs, rights and feelings of others, and to know differences between the behaviour of an individual which contributes or hinders the functioning and progress of a group, to distinguish between non-violent

¹³

Which calls on states to “ensure that all learners acquire the knowledge and skills needed to promote sustainable development, including, among others, through education for sustainable development and sustainable lifestyles, human rights, gender equality, promotion of a culture of peace and non-violence, global citizenship and appreciation of cultural diversity and of culture’s contribution to sustainable development”.

and violent communication among the group members based on examples from everyday life, literary works they read and films they watch, to recognise in their environment the examples of unequal treatment of a person or a group based on their personal characteristic, to behave in a way that respects their own and the needs of others, rights and feelings in everyday situations, to indicate a simplified, simple, generalized and most often incorrect presentation of someone or something on presented examples, to indicate examples of gender equality and inequality in situations from everyday life. **KEY TERMS OF THE CONTENT** are Democratic society in the context of learning about the meaning of terms: equality, responsibility, solidarity, respect and **care for others**, tolerance, fairness, honesty. Equality of men and women - respect for differences with equal rights, responsibilities and opportunities, Concepts: stereotypes, prejudices and discrimination - Civic activism and Tolerance. In **secondary education** and upbringing, there are thematic units which expected learning outcome is for students to recognise stereotypes, prejudices and all kinds of discrimination, to notice different types of violence through conversation and analysis and classification of collected examples (from the press, TV shows, movies – both visible and hidden), gain awareness that violence exists in all spheres of society and that in the minds of most there are stereotypes about who the perpetrators are. In addition to the subject of *Civic Education*, an elective programme was introduced in secondary school: An individual, group and society, Language, media and culture, Health and sport, Education for sustainable development, Art and design, Applied sciences, Fundamentals of geopolitics, Economy and business, Religions and civilisations, Methodology of scientific research, Modern technologies.

The Catalogue of the programme of continuous professional development of teachers, educators and professional associates for 2018-2021 contains a total of 32 programmes in the field of equality and protection from violence and discrimination. Democratic education requires an integrated approach, meaning that it is not realised only through special subjects and classes, but is rather interconnected with all school activities and the entire school organisation. This is why six manuals of the Council of Europe from the edition *Living Democracy* were translated into Serbian, in cooperation with the Council of Europe and Zurich University. The manuals can be found at the website of the MESTD <http://www.mpn.gov.rs/materijali-savet-evrope> and the website <http://www.living-democracy.rs>.

All teaching and learning processes in all subjects in schools should lead to the development of general competencies in order to achieve the goals that society has set for the education system. General competencies are developed through all subjects and all subjects give their contribution even when the direct connection is not visible at first sight. They are applied in different situations and contexts, and when different problems are solved. They are necessary for all students for their personal fulfilment, development and employment and form the basis for lifelong learning. The following general and **interdisciplinary competencies** are prescribed in the educational system of the Republic of Serbia as the most relevant for adequate preparation of students for active participation in society and lifelong learning, some of them are: communication, responsible participation in a democratic society, problem solving, cooperation.

The goals to be achieved through global education are fully compatible with the goals and principles of legal and strategic documents that define and determine the youth sector in Serbia, i.e. the Law on Youth (*"Official Gazette of RS"*, No. 50/11) and the National Youth Strategy for the period from 2015 to 2025 (*"Official Gazette of RS"*, No. 22/15), and the Action Plan for the implementation of the National Youth Strategy for the period from 2018 to 2020 (*"Official Gazette of RS"*, No. 99/18"), where basic principles are support for personal and social empowerment of young people; respect for human and minority rights, equality and non-discrimination; equal opportunities for all; the importance of young people and their social role; active youth participation and cooperation; social responsibility and solidarity. Global education in Serbia is, as a topic, in the process of finding its place, while aspects of global education are applied through the reform of the education system, campaigns that promote the rights of migrants and refugees in Serbia, the National Youth Strategy, youth work programs. One of the most important current initiatives in the region is to increase regional mobility, participation of young people in the decision-making process and social inclusion, promote the European spirit of cooperation, understanding and tolerance, and is implemented through the Regional Office for Youth Cooperation in the Western Balkans which

has realised three competitions in the amount of over EUR 2.2 million, approved more than 100 projects and established over 2400 partnerships. The annual contribution of the Republic of Serbia is 389,000 euros, and as the Republic of Serbia is the initiator of cooperation within the six signatories of the agreement, during 2019, about 416,000 euros were donated from the budget for the work of local branches.

Every year, the MOESTD makes a Public Call for applications for financial support to civil society organizations and other non-profit organizations that support the education system. It was the first time that in the 2019 Call, one of four priority topics coincided with the Global education, namely, one of the priority areas of the Call was: Education for Sustainable Development – Publication of electronic and printed content – brochures, manuals and other informative publications and the creation of innovative methods for promoting the goals of sustainable development in education, with the focus on objective 4.7 of the 2030 Agenda - Education for Sustainable Development and Global Citizenship. Out of a total of 53 approved projects, 33 projects deal with the topic of education for sustainable development and are financially supported by the MOESTD in the amount of EUR 48,000.00, which is 65% of all amounts awarded by this Public Call. The topic of language competences is covered by 3 projects with the total value of 6.4% of the total funds, the area of dropout prevention was allocated with 22% of the total funds to be realised through 13 projects, while the importance of early development is covered by 4 projects with 6.6% of the total available funds in this Public call. The projects of NGOs will be implemented in the period from October 2019 until May 2020.

2.8 Private education

Articles/Paragraphs 2(c) and 5(1)(b) of the Convention/Recommendation provide for private education.

- Does your country have a regulatory framework relating to the establishment and functioning of private educational institutions?

Yes ☐ No ☐

- Please provide a brief description:

The Law on Primary Education, Article 13, regulates that according to the programme of education a school implements, the school can be a national school or a foreign school. The curriculum adopted on the basis of the Law is realized by the national school. A foreign programme in accordance with the Law is realized by a foreign school.

Article 14 - when it comes to its founder, a school can be either a state school or a private school. The Republic of Serbia, an autonomous province or a local self-government unit is the founder of a state school. Another domestic and foreign legal or natural person is the founder of a private school.

Article 16 - A private school is established in accordance with the Law. If there are several founders of a private school, their mutual rights and obligations are regulated by a contract. Article 17 - National and foreign schools - A national school is established as a state school, and may also be established as a private school. A foreign school is established by a foreign state, a foreign or domestic legal or natural person, in accordance with the Law. A public document issued by a foreign school is recognized and considered equal as a public document issued by a national school, after conducting the procedure of recognizing a foreign school document.

In Article 51. Paragraph 1. Law on Higher Education ("Official Gazette of RS", number 88/2017, 27/2018-Dr. Law, 73/2018, 67/2019 and 6/2020-Dr. Laws), stipulates that a third-party institution may establish a republic, a legal and private person, in accordance with the law. The law is equal to higher education institutions, which is the founder of the Republic and institutions, which are the founders of private legal and private persons. The establishment process – standards for initial accreditation and conditions for obtaining the work permits are the same for all higher education institutions regardless of the founder. Standards for initial accreditation of higher education

institutions are prescribed by the regulation on standards for initial accreditation of higher education institutions and study programmes ("Official Gazette of RS", number 13/2019). Also, the conditions that must be provided by the high school institutions for performing activities and standards for accreditation and external verification of high school institutions and study programs, as the standards for self-management of high school institutions and study programs are the same for all higher education institutions and are prescribed by the regulations on standards and procedures for accreditation of higher Education institutions, regulations on standards and procedures for accreditation of study programmes, regulations on standards for self-management and evaluation of the quality of higher education institutions and study programs and regulations on standards and procedures for external quality assurance of higher education institutions ("Official Gazette of RS", number 13/2019).

- Do legal provisions prohibiting discrimination on the grounds listed by the Convention/Recommendation¹⁴ explicitly apply to private educational institutions?

Yes ☒ No ☐

- Please briefly describe what laws, regulations or policies guarantee that the development of private education does not generate discrimination and that private schools offer a relevant alternative in your country:

The Law on the Fundamentals of Education considers state and private schools or faculties equal.

Equality is also emphasized in the existing Strategies related to education.

Article 4. Paragraph 1. Point 7. Law on Higher Education ("Official Gazette of RS", number 88/2017, 27/2018- Law, 73/2018, 67/2019 and 6/2020- other Laws) is prohibited from any form of discrimination. Article 9. Paragraph 1. The law defines that the right to higher education have all persons with general, professional or artistic graduation, in accordance with this law and the law regulating secondary education. The accredited study programs organized by the High school institution may be written to candidates under the conditions and in the manner regulated by this Law and the General Act of the Autonomous high school institution, whether they have previously completed a private or state secondary school, if they have fulfilled the criteria prescribed by the High school institution on the basis of which the classification and selection of candidates for admission to studies have been published in the competition to study. In the competition, any form of discrimination against the candidates has been forbidden.

- Does your country have an education policy framework for minimum educational standards as regards the rights of the parents /legal guardians for providing religious and moral education for their children?

Yes ☐ No ☐

2.9 Rights of national minorities

Article/Paragraph 5(1)(c) of the Convention/Recommendation provides for the rights of national minorities. National minorities, who often face language barriers, are among the specific groups referred to in the Convention.

- Please indicate the legal, policy and regulatory measures that protect the rights given to national minorities to carry out their own educational activities (several items could be ticked/mentioned):

☐ **Constitutional laws and/or legislation protect the right to education of national minorities**

- ☐ **Legislation or regulations guarantee the right of national minorities to study in their mother tongue**
- ☐ **Curriculum is adapted to national minority needs**
- ☐ **Teachers are trained to adapt to national minority needs**
- ☐ Other:

/

- Please provide a brief description of the provisions:

The legislative framework in the field of education in the languages of national minorities

Law on Fundamentals of the Education System ("Official Gazette of RS", No. 88/2017, 27/2018 - other law, 10/2019, 27/2018 - other law and 6/2020), in **Article 5** Language, prescribes that educational work is carried out in the Serbian language and Cyrillic alphabet, while for members of the national minority educational work is carried out in the language, i.e. speech and script of the national minority, while educational work may be performed also bilingually in the language and script of the national minority and in the Serbian language, in accordance with a special law. In the part of the LFES which focuses on the objectives of education, **Article 8** underlines the "respect and fostering of Serbian language and mother tongue, traditions and culture of the Serbian people and national minorities, development of interculturalism, respect and preservation of national and world cultural heritage". With regard to the network of public institutions, **Article 104** of the LFES defines that a local self-government unit in which both the language and script of a national minority are in official use, i.e. in which educational work is carried out in the language and script of a national minority, the act on the network of public preschool institution and public primary schools is adopted with the previously obtained opinion of the national council of the national minority whose language and script are in official use in the local self-government unit, i.e. whose language and script are used in the educational work. **Law on Preschool Education** ("Official Gazette of RS", no. 18/2010, 101/2017, 113/2017 – other law, 95/2018 – other law and 10/2019) in Article 5, Language use, defines the following: "Educational work is carried out in the Serbian language. For members of the national minority, educational work is performed in the language of the national minority, and it can also be performed bilingually in the language of the national minority and in the Serbian language, if at least 50% of parents or other legal representative of children decide to do so. The statute of the preschool institution determines the language in which the educational work is performed, and the preschool programme determines the manner of realization". Article 6, Records and public documents, defines that „When educational work is performed in the language of a national minority, the institution keeps records in the Serbian language in Cyrillic and in the language and script of the national minority, except for records and pedagogical documentation on educational work conducted in the language in which the educational work is performed“. Article 7a, Records on employees, states that records on employees contains the information on the nationality, information on the language in which primary, secondary and higher education was acquired and the information of the knowledge of the language of the national minority. Article 18 of the law, which deals with various forms and programmes of educational work, underlines that „In order to improve the quality of educational work, expand the diversity of programs, forms of work and services and increase the coverage of children, the preschool institution implements various forms and programs in the function of providing care, education of children, rest and recreation, family support, care for language and culture of the national minority“. When it comes to the education of educators, Article 39 stipulates that The work of an educator may be performed by a person who meets the requirements prescribed by law and has appropriate education, as follows: 7) with children - members of national minorities - a person who meets the requirements of item. 1) to 6) of this paragraph, if he has acquired the appropriate education in the language in which the educational work is performed or has passed the exam in that language with the methodology at the appropriate higher education institution - educator, in accordance with the Law. Exceptionally, in the absence of educators with knowledge of the language of a national minority, with an educator who does not meet the requirements due to lack of knowledge of the language, an assistant educator with knowledge of language and at least secondary education may be hired, until the termination of the procedure of the competition, not longer than until 31 August of the next year". **Law on Primary Education** ("Official Gazette of RS", no. 88/2017, 27/2018 – other law, 10/2019, 27/2018 – other law 6/2020) in Article 12, Language in which the education work is realised, stipulates the following: "Educational work is carried out in the Serbian language. For members of the national minority,

educational work is performed in the language of the national minority. Exceptionally, for members of the national minority the educational work may also be performed bilingually in the language of the national minority and in the Serbian language. When educational work is performed in the language of a national minority or bilingually in the language and script of the national minority and in Serbian, the ministry competent for education, upon obtained opinion of the relevant national council of the national minority, gives the consent for the realisation of the educational work for less than 15 pupils enrolled in the first grade. When the educational work is performed in Serbian, for pupils who are members of the national minority, classes of the language/script of the national minority with the elements of national culture as an elective subject. When education is acquired in a language of a national minority, foreign language or bilingually, learning of Serbian language is mandatory". **Law on Secondary Education** ("Official Gazette of RS", no. 55/2013, 101/2017, 27/2018 – other law and 6/2020) in Article 5, Language Use stipulates the following: "Educational work is carried out in the Serbian language. For members of the national minority, educational work is performed in the language and script of the national minority, or bilingually, if at least 15 students decide to do so when enrolling in the first grade. The school may carry out educational work in the language and script of the national minority, i.e. bilingually also for less than 15 students enrolled in the first grade, with the consent of the ministry responsible for education, in accordance with the law. The consent for the realization of the school programme in the languages of national minorities for less than 15 students is given by the Ministry after obtaining the opinion of the relevant national council of the national minority in accordance with the law governing the competence of national councils of national minorities. If the national council of a national minority does not submit an opinion within 15 days from the day of receipt of the request, the opinion shall be deemed to have been given. When the educational work is carried out in the language and script of the national minority, the school is obliged to organize Serbian language classes for the student. When the educational work is carried out in the Serbian language, the teaching of the language of the national minority with elements of national culture is organized for the student belonging to the national minority." **Law on Dual Education** ("Official Gazette of RS", no. 101/2017 and 6/2020) in Article 22, stipulates the following: "*Work-based learning contracts shall include the following mandatory elements if the curriculum is delivered in the language of a national minority, the employer shall be obliged to organise and deliver work-based learning in the language of the national minority concerned*". In Article 29, it stipulates that "*An instructor shall be a person who:*

- 1) *is employed with the employer, or conducts economic activity in a self-employed capacity;*
- 2) *has at least three years' work experience in the relevant occupation or group of occupations in which the student is receiving training in dual education;*
- 3) *has at least the same education attainment level as the occupational profile pursued by the student;*
- 4) *has knowledge of the language of a national minority in which the curriculum is delivered* ".

Law on Textbooks ("Official Gazette of RS", no. 27/2018), in Article 3, *Textbook in Language and Script of a National Minority*, closely defines these textbooks as follows: "*A textbook in the language and script of a national minority is considered to be: 1) a textbook in the language and script of a national minority published on the territory of the Republic of Serbia; 2) a textbook in the language and script of a national minority which is a translation of a textbook approved in the Serbian language; 3) a supplement to the textbook used for the implementation of the adapted part of the curriculum for subjects of importance to the national minority; 4) a textbook / in the language and script of a national minority issued in a foreign country, which has been approved in accordance with this Law*". The provisions of this Law relating to the textbook shall accordingly apply to the appendix referred to in paragraph 1, item 3) of this Article for subjects of importance for the national minority. Article 12, Use of Language and Script, stipulates that "*A textbook, manual, additional teaching aid, didactic tool and didactic game tool shall be published in the language and script of a national minority when educational work is performed in that language. For children, students and adults with disabilities, textbooks, manuals, additional teaching aids, didactic and didactic play aids are issued in accordance with the needs and abilities of children, students and trainees, both in Serbian and in the language and script of national minority. The provisions of this Article shall accordingly apply to the electronic supplement*". The Law on Textbooks prohibits discrimination in Article 13, Equal Opportunities and Prohibition of Discrimination, *Textbook, manual, electronic appendix to the textbook, additional teaching aid, didactic tool and didactic game tool with their content or form must not discriminate or disadvantage groups and individuals or encourage such behaviour, in accordance with the law governing the prohibition discrimination*". The process of obtaining the missing low circulation textbooks in the languages of the national minority has been significantly improved by the establishment of the Centre for low circulation textbooks according to the Law on Textbooks, Article 15, which prescribes, "*The public publisher, for the publication of low-circulation textbooks referred to in Article 11 of this Law, shall establish the Centre for Low-Circulation Textbooks as a separate organizational unit. A public publisher publishes a low-circulation*

textbook, if the publisher itself does not publish that low-circulation textbook". The adoption of the Rulebook on low-circulation textbooks (*"Official Gazette of RS", No. 69 of September 14, 2018*) regulates in more detail the conditions and other issues relevant to the issuance of low-circulation textbooks: type of low-circulation textbooks, elements for determining production costs and retail prices, as and providing funds for the publication of low-circulation textbooks. Article 2, defines low-circulation textbooks as textbooks whose direct and indirect production costs and dependent selling costs are higher than the retail price. A low-circulation textbook is considered, among other things, a textbook in the language and script of a national minority. In addition, the obligations of publishers who publish low-circulation textbooks are defined in Article 7, which prescribes the following: *"A publisher that publishes low-circulation textbooks selected by schools for use is obliged to: 1) provide low-circulation textbooks in a sufficient number of copies according to the expressed needs of schools and users for the school year in which the Textbook Catalogue was published; 2) make selected low-circulation textbooks available to the sales network, no later than August 15 of the current school year for the next school year; 3) to sell low-circulation textbooks published in the language and script of a national minority, i.e. published in an adapted script and / or format for students with disabilities, at a retail price including the VAT which may not exceed the retail price of the textbook and the manual including the VAT in Serbian language which has been translated, i.e. which script and / or format has been adapted "*.Also, the obligations of publishers who do not publish low-circulation textbooks are defined, Article 8: *A publisher that does not publish low-circulation textbooks is obliged to: 1) participate in providing funds for publishing low-circulation textbooks in the amount of 2% of net income from textbooks sold in the previous calendar year and to calculate and pay these funds to a dedicated publisher's account, no later than March 31 of the current year; 2) no later than June 1 of the year in which the Textbook Catalogue is published, submit to the Ministry a bill of exchange in the amount of 2% of the projected net income, calculated on the basis of circulation representing the number of textbooks required for all students attending schools which have selected textbooks of that publisher before the publication of the Textbook Catalogue, for one school year; 3) submit to the public publisher a manuscript of the textbook together with the necessary documentation for the purpose of lawful and unhindered publication of that textbook by the public publisher.* The Ministry of Education, Science and Technological Development is actively working on strengthening the language competencies of teachers who teach in one of the languages of national minorities in subjects taken at the final exam at the end of the 8th grade of primary education. MOESTD and the Pedagogical Institute of Vojvodina have developed a programme of professional development of public interest "Training modules for the development of language competencies of teachers who teach in the languages of national minorities." The training programme was developed based on the needs of the implementation of activities within the Action Plan for the implementation of the Education Development Strategy in Serbia, and is also directly related to the Action Plan for the realization of the rights of national minorities. The online training covers 3,000 teachers who teach in one of the languages of national minorities.

- As regards the educational standards in educational institutions run by minorities, please describe the existing legal and policy framework:

Information could also cover the language facilities, such as the availability of teaching in the mother tongue of the students, use of teaching of languages in education policy, multilinguals, etc.

Law on National Councils of National Minorities ("Official Gazette of RS", no 72/2009, 20/2014 – CC decision, 55/2014 and 47/2018) regulates the legal position and authorisation of national councils of national minorities (hereinafter referred to as: national councils) in the field of culture, education, information and official use of language and script. The National Council represents a national minority in these areas. The authorisations in the field of education are: 1. Right to establishment – a national council may, pursuant to the law (Article 11) establish educational institutions, pupils' and students' institutions and exercise the rights and obligations of the founder. The Republic, the autonomous province and the local self-government unit, acting as the founders of the institutions established as institutions of particular importance for the national minority, may delegate their rights to establishment to a national council, either entirely or partially. An institution of particular importance for the education of a national minority is an institution of education and upbringing founded by the Republic, an autonomous province, a local self-government unit or a national council, in which the constitutionally guaranteed right of members of national minorities to education in their own language is traditionally or significantly realised. In this institution, the national council participates in the management in accordance with the law. In preschool institutions, and primary and secondary education institutions founded by the Republic, an autonomous province or

a local self-government unit, in which educational work is also performed in the language of a national minority, or in which speech, language or culture national minorities is studied as a special subject, the national council: gives an opinion on the proposed candidates for members of the administrative or school board - representatives of the local self-government unit, proposes members of the administrative or school board, gives an opinion on the candidate for the principal of the institution. When it comes to the syllabi (Article 13) a national council: proposes to the minister in charge of education the platforms of preschool syllabi, primary and secondary school syllabi as well as basic programmes of instructions, which cover the contents expressing specific features of a national minority, especially in history, music and art, proposes primary and secondary school syllabi for the language of a national minority, i.e. for the speech of a national minority with elements of the national culture; gives an opinion with regard to syllabi for Serbian as the second language. When it comes to the textbooks (Article 14) a national council shall give consent in the process of approval of the scripts of textbooks, manuals, additional teaching aids, didactic means and didactic game tools in the language and script of the national minority, in accordance with the law. The national council also defines the institutions of particular importance for education of a national minority, gives opinion in the process of passing acts on the network of preschool institutions, primary and secondary schools in local self-government units in which the language of the national minority is in official use or in which educational work is carried out in the language of the national minority.

Information on education in the languages of national minorities in the Republic of Serbia

MOESTD monitors the education of national minorities and education in the languages of national minorities through the Dositej information system. On the territory of the Republic of Serbia teaching in the academic year 2019-20 is carried out in 1184 primary schools and 446 secondary schools, then 61 primary and secondary music and ballet schools, 48 schools for adult education, 44 primary special schools, in 23 secondary special schools. Number of schools teaching in one of the 8 languages of the national minority - Albanian, Bosnian, Hungarian, Romanian, Ruthenian, Slovak, Bulgarian and Croatian: 189. The education system in the Republic of Serbia can be realised by using one of three possible models: a. All teaching in the minority language, with the obligatory subject *Serbian as a non-mother tongue*; b. bilingual education and c. All education is realized in the Serbian language, with an elective subject / programme *Mother tongue / speech with elements of national culture*. These models correspond to the three models mentioned in Article 8 (Education, Part III) of the European Charter for Regional or Minority Languages. **Members of 8 national minorities attend education in their mother tongue: Albanian, Bulgarian, Bosniak, Hungarian, Romanian, Ruthenian, Slovak and Croatian national minorities.** In 34 primary and 4 secondary schools, classes are held in only one of the eight languages of the national minority. The number of students attending all classes in one of the eight languages of the national minority is continuous and slightly increasing.

Table 1. Number of students attending classes in the language of a national minority in relation to the total number of students in the Republic of Serbia.

	<u>No. of pupils 2016/17</u>	<u>%</u>	<u>No. of pupils 2017/18</u>	<u>%</u>	<u>No. of pupils 2018/19</u>	<u>%</u>	<u>No. of pupils 2019/20</u>
TOTAL number of pupils in primary and secondary schools in Serbian language	816 911	94,84	803 086	94,73	771 503	94,55	781 150
TOTAL number of pupils in primary and secondary schools in languages of national minorities	44 481	5,16	44 633	5,27	44 425	5,44	44 070
TOTAL number of pupils in primary and secondary schools in the Republic of Serbia	861 392	100	847 719	100	815 928	100	825 220

Source: Ministry of Education, Science, and Technological Development

For students who attend classes in the Serbian language and are members of national minorities or want to learn the language of a national minority, there is an elective subject / programme *Mother tongue / speech with elements of national culture*. *Mother tongue / speech with elements of national culture* is carried out as an elective programme in 321 primary schools in the Republic in 157 local self-government units. His elective programme is carried out in 15 languages of national minorities, in school year 2018/19, the elective programme *Slovenian language with elements*

of national culture was introduced, and in school year 2019/2020 *Немачки* German language with elements of national culture was introduced. Every year, the Ministry of Education, Science and Technological Development prepares a Unified Questionnaire for the elective subject / programme *Mother Tongue / Speech with elements of national culture*, which is delivered to all primary schools in the Republic of Serbia through school administrations. Interested parents are interviewed through this questionnaire. This elective subject / programme is implemented through a fund of two hours per week in primary schools. The status of the elective subject / programme *Mother tongue / speech with elements of national culture* has been improved by adopting the Professional Instruction on the formation of classes and the method of financing in primary and secondary schools, which is adopted for each school year. The novelty brought by this document enables the school that realizes the programme of the elective subject / programme *Mother tongue / speech with elements of national culture*, to form a group at the cycle level, i.e. a group consisting of students from first to fourth grade (first cycle students) and / or a group consisting of students from fifth to eighth grade (second cycle students). Also, groups for the elective subject / programme *Mother tongue / speech with elements of national culture* can be formed at the level of several schools in one municipality, with the consent of the competent school administration. The minimum number of students to form a group at the cycle level or more is 10 students. However, in practice, groups with at least 5 students are usually approved. National councils of national minorities actively participate in informing parents about the importance of learning their mother tongue and speech, as well as in forming classes / groups for this elective subject / program. In school year 2018/19, Ministry received 30 requests for the formation of groups for the elective subject / programme *Mother tongue / speech with elements of national culture* with a smaller number of students than prescribed, of which 95% were approved. The status of this elective subject / programme has been strengthened since the 2017/18 school year, when Computer science, which used to be an elective subject, became a regular subject and previously elective subjects became elective courses. Thus, only *Mother tongue / speech with elements of national culture* remains an elective subject. This led to a better position of this elective subject / program, because students do not have to choose between mother tongue and computer science, for example, which was the most common case. In academic year 2018/19 469 teachers were hired to teach this elective subject / programme.

Table 2. Number of pupils attending elective subject / programme *Mother tongue with elements of national culture* in primary schools

Elective subject / programme	2015/16	2016/17	2017/18	2018/19
	Number of pupils			
Hungarian language with elements of the national culture	2659	2978	3999	3457
Bosniak language with elements of the national culture	3578	2302	3916	3020
Romani language with elements of the national culture	1565	2264	2252	2860
Romanian language with elements of the national culture	535	800	761	704
Slovak language with elements of the national culture	692	667	962	1040
Bulgarian language with elements of the national culture	571	617	1031	990
Croatian language with elements of the national culture	459	417	428	494
Ruthenian language with elements of the national culture	356	416	380	397
Bunjevac speech/language with elements of the national culture	429	412	414	369
Vlach language with elements of the national culture	194	331	394	440
Macedonian language with elements		131	214	219

of the national culture	81			
Ukrainian language with elements of the national culture	106	106	72	85
Czech language with elements of the national culture	63	73	93	168
Albanian language with elements of the national culture	7	7	51	70
Slovenian language with elements of national culture	-	-	-	23
TOTAL	11,113	11,509	15 950	13 939

Source: Ministry of Education, Science, and Technological Development

When it comes to forming a class, the legal minimum is 15 students. However, classes in the language of a national minority often have fewer students than prescribed. In that case, the competent minister has the right to approve the formation of a class or group with a smaller number of students than prescribed. We insist that we act affirmatively on this issue, because during the previous school years there was no abolition of classes in the language of the national minority, although on average there are 10, and often fewer students in a class. Every school year, during the process of making decisions on the formation of departments in minority languages, the opinions and suggestions for each place, school and department given by the local self-government and the national council of the national minority are accepted. The Republic of Serbia is committed to the protection of the minority rights in the future regarding the rationalisation of the school network, primarily when it comes to the right to education in a mother tongue. We believe that the language of instruction should be considered as a special criterion, and that classes with a smaller number of students than prescribed cannot be abolished if the instruction is in the language of a national minority. collects data on institutions of particular importance for national minorities. This data is used when creating a network of schools and departments. The Ministry is guided by the affirmative principle when approving classes with a smaller number of students than prescribed by law. In the school year 2018/19, 57 primary schools addressed the Ministry with a total of 128 requests for approval of classes with a smaller number of students than prescribed for 8 languages of the national minority (Albanian, Bosniak, Bulgarian, Hungarian, Ruthenian, Romanian, Slovak, Croatian). 103 requests were approved, which is 80%.

2.10 Rights of refugees and migrants

The rights of refugees and migrants are not explicitly provided for in the Convention/Recommendation. However, the Convention and Recommendation call on states to eliminate and prevent discrimination in education based notably on national origin.¹⁵ In this context, a number of Member States that participated in the 9th Consultation reported on measures adopted to ensure refugees' and migrants' right to education. Growing displacement and influx of refugees worldwide and the emergence of major educational challenges in this area, as well as the frameworks recently adopted by the international community,¹⁶ demonstrate the opportunity for states to report on measures adopted to include refugees and migrants in their educational systems.

Besides, this aspect also corresponds to SDG target 4.5, which calls on states to "ensure equal access to all levels of education and vocational training for the vulnerable", including "children in vulnerable situations", and covers the majority of SDG4 targets.

- Please briefly describe the existing legal and policy framework that protects the right to quality education for refugees and migrants in your country.

¹⁵ Articles/Paragraphs 1 and 3.

¹⁶ Namely the 2016 New York Declaration for Refugees and Migrants, the Comprehensive Refugee Response Framework and the two Global Compacts on refugees and for safe, orderly and regular migration.

When it comes to the access to education, registration of students, the principle of equal treatment, prevention of xenophobia and intolerance, the Republic of Serbia fulfils its obligations under the Constitution of the Republic of Serbia, in particular Article 71 which stipulates that everyone has the right to free primary education which is mandatory, while secondary education is free. All citizens have the right to access higher education under equal conditions. The Law on the Fundamentals of the Education System ("*Official Gazette of the RS*", No. 88/2017, 27/2018 - other law, 10/2019, 27/2018 - other law and 6/2020) defines in Article 3 that every person has the right to education and upbringing. The objectives of education and upbringing in Article 8 are, inter alia, to develop a sense of solidarity, understanding and constructive cooperation with others and to foster friendship; developing competencies for understanding and respecting the rights of the child, human rights, civil liberties and the ability to live in a democratically organised and just society; development and respect for racial, national, cultural, linguistic, religious, sex, gender and age equality, tolerance and respect for diversity, etc. Article 23 defines the registration of a foreign citizen, stateless person and citizenship seeker who enrol in the institution referred to in Article 89 of this Law and exercise the right to education and upbringing under the same conditions and in the manner prescribed by law for citizens of the Republic of Serbia. For children and students referred to in paragraph 1 of this Article, for expelled and displaced persons, refugees and migrants and children and students who have been returned to the country based on a readmission agreement, who do not know the language in which educational work is carried out or certain program contents of importance for the continuation of education and upbringing, the institution organises language learning, preparation for classes and additional classes, according to special instructions issued by the Minister.

One of the biggest challenges for our education system is the fact that refugee children rarely have previous education documentation with them, and in most cases, it is impossible to have an insight into previously acquired education and achievement. Also, it is not possible to determine which grade children should be enrolled in based on their age, although it is recommended to send them to a peer group or to minimize the age difference. In reception centres there are children who have long been excluded from education in the country of origin, without education in transit, or children who have long been excluded from education in the country of origin, but had some form of education in transit countries where they spent a long time (with frequent interruptions due to relocation), as well as children who have never been to education, neither in the country of origin, nor in transit countries. The Working Group has been established in the MOESTD for providing support in education of refugee students and asylum seekers in the institutions of the education system, with the task to improve the process of inclusion of migrant children in the education system and quality education. Coordination of activities with other institutions has been improved: the health sector, the Ministry of the Interior and the Commissariat for Refugees. A high level of cooperation has been achieved with international organizations (UNICEF, OSCE, Save the Children), and non-governmental organizations (Danish Refugee Council, Group 484, Indigo, SOS Village, Novak Djokovic Foundation). After the experience that the schools had in the second semester of school year 2016/17, Minister issues the Professional Guide for the inclusion of student refugees/asylum seekers in the education system <http://www.mpn.gov.rs/wp-content/uploads/2017/06/STRUCNO-UPUTSTVO.pdf> which will start the institutional resolution of the issue of the inclusion of children who are migrants / asylum seekers. The Professional Guide was forwarded to all schools, and a number of trainings organised in 2017 also included the information on the application of this document. It is planned in the *Professional Guide* that the Expert Team for Inclusive Education (there is one in every school) makes a School Support Plan for the inclusion of refugees /asylum seeker, which should include the activities of the class teacher, organisation of general school parent meeting, homeroom class in order to prepare parents and students for the arrival of a new student who needs support; The team for prior knowledge testing can be supplemented by the following members: translator, foreign language teacher, pedagogical assistant (if already working at the school), coordinator or member of the Inclusive Education Team, secretary of the institution, pedagogical advisor if working in the institution, representative of the professional service, guardian of the centre for social work or a parent, while the assessment of the previous knowledge is completed within seven days. The Government of the Republic of Serbia, through the competent ministries and the Commissariat for Refugees and Migration, and with the support of civil society and international organizations, has made significant efforts to adequately respond to the needs of migrants, especially children. In the period from 2015 to 2020, more than half a million migrants entered the Republic of Serbia. The Government of the Republic of Serbia has adopted a series of measures aimed at improving the awareness of migrants about the services available to them. In order to institutionally and most efficiently organize the response to the humanitarian crisis and needs, the Government of the Republic of Serbia established a Working Group for solving the problem of mixed migration flows with the intention of ensuring coordination and guiding the work of competent bodies in the field of migration. At the same time, the Government has established the regular adoption of a Response Plan in case of increased influx of migrants, which enables efficiency and effectiveness in response to a possible increased number of migrants in the Republic of Serbia.

- Please briefly indicate measures adopted by national and local authorities to ensure refugees' and migrants' right to education (several items could be ticked/mentioned):

☐ **Inclusion in mainstream education**

☐ Provision of language courses

☐ Specific training for educational staff

☐ Initiatives addressing discrimination and promoting cultural diversity and mutual acceptance

☐ Alternative administrative procedure (placement tests, portfolio of evidence, etc.)

☐ Accelerated learning programmes

☐ Non-formal and/or alternative education programmes

☐ Financial support

☐ Other innovative measures:

The Ministry of Education, Science and Technological Development (MOESTD), respecting the Constitution of the Republic of Serbia and a number of conventions guaranteeing rights in the field of education, applies a number of documents regulating the enrolment and education process of migrant students, but also students who do not know the language of instruction or certain program contents of importance for the continuation of education and upbringing. With the aim of improving the availability and quality of the education system for migrant students and asylum seekers, MOESTD implements projects in cooperation with other departments and international organizations. Education is a basic human right for all children and in addition to existential problems, refugees and migrant children face serious barriers to accessing quality education through language barriers and ethnic differences, unresolved legal status, war experience and accompanying trauma, potential social conflicts with domicile groups and other migrant groups. MOESTD has resolved structural issues in terms of improving and managing the process of education of migrant children and students, as well as in terms of increasing quality education. ***Development of Serbian language as a foreign language*** has improved the system of education and competence of teachers through the creation and adoption of a new Curriculum for the subject *Serbian as a foreign language* and training of 100 *Serbian and foreign language* teachers for the application of the new curricular framework. ***By improving the capacity of educational institutions for the inclusion of migrant students in the educational system in the Republic of Serbia*** sustainable integration of children and migrant students in the system has been achieved through improving the professional competencies of teachers and supporting schools attended by migrant students. The competencies of 1390 teachers and professional associates have been improved through 3 modular trainings, and 51 primary and secondary schools have been strengthened for the admission and education of migrant students through the awarding of a total of 52 small grants. With these grants, schools provided school equipment and didactic materials that enabled teachers to work better with migrant students who do not speak the language of instruction, then teachers produced their own didactic material, provided school supplies for migrant students, hired translators to help involve students. migrants in the teaching process, the local community connected with migrant families in the activities that encourage mutual cooperation. Small grant activities have contributed to improving the intercultural atmosphere in schools. Through extracurricular activities, all students in schools learned about recognizing stereotypes and prejudices and ways to overcome these negative social phenomena. The support of the school and the local community, the engagement of translators and teachers for additional teaching of the Serbian language in the initial period helped migrant students who attended or are still attending classes to be fully included in the education system and school life. It is important to stress that the activities are aimed at improving the quality of the teaching process for migrant students through the procurement of technology and computer equipment, teaching aids, teaching materials and literature (maximum 30% of the grant value). A small grant also provided translator services with the aim of improving the quality of the teaching process for migrant students. All planned activities of the small grant were aimed at developing interculturality and tolerance.

Results of schools in which migrant students participated

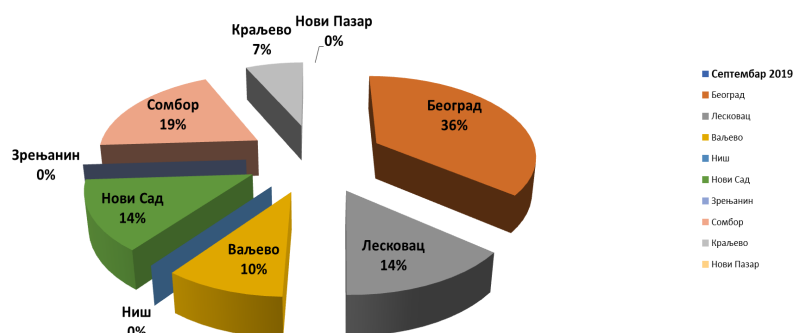
- Improved atmosphere of tolerance and respect for diversity;
- Developed 1500 support plans for migrant students and 51 support plans at the school level;
- Over 700 additional classes were held, 45 visits to libraries, continuous peer support, 40 trips, 18 outdoor teaching, 48 trips to the theatre, 10 trips to the technology fairs,
- Over 500 sports and cultural activities;
- Celebration of important dates;
- Humanitarian activities - 600 snacks, 550 pieces of clothing and footwear provided; 300 workshops with all students on the following topics: interculturality, tolerance, friendship, introduction to the culture of migrant students, anti-discrimination, non-violent communication, developing empathy and providing support to migrant students;
- 100 public events with authentic music, cuisine, customs, dance - introduction to the culture and tradition of migrants;
- 65 visits to reception centres with the aim of motivating migrants - children and parents to enrol children in school;
- Provided 400 books and textbooks, 450 sets of school supplies, 250 sets of physical education equipment.

Schools that educate migrant students are also supported by **mentors (10) advisors-external collaborators** who helped schools prepare project proposals, monitored the implementation of activities, then, mentors monitored student achievements and benefits in schools. The work of mentors enables continuous monitoring of the inclusion of migrant students and monitoring the quality of work of schools in which these students are educated. Also, their engagement improved the documentation and analysis of measures that are examples of good practice, evaluation of program success, while mentors provided consultations and enabled the exchange of experiences and knowledge. Mentors - advisors-external associates are engaged in school administrations in Belgrade, Novi Sad, Sombor, Zrenjanin, Leskovac, Nis, Valjevo, Kraljevo, Novi Pazar, in local governments where there are reception centres. MOESTD promoted examples of good practice and achievements of migrant students and asylum seekers through the development of a manual for teachers - Catalogue of Good Practice <http://www.mpn.gov.rs/wp-content/uploads/2019/07/MADAD-katalog-dobre-prakse.pdf>. The Catalogue presents schools that have implemented small grants, activities undertaken under the MADAD 2 project, highlighted the application of good practice in working with migrant students. Also, the Catalogue is published on the web platform remis.rs https://remis.mycpanel.rs/suite1/katalog_dobrih_praksi/ and the website of the MOESTD. The challenge for our education system is the fact that migrant children rarely have previous education documentation with them, and in most cases, it is impossible to have an insight into previously acquired education and achievement. Also, it is not possible to determine which grade children should be enrolled in based on their age, although it is recommended to send them to a peer group or to minimize the age difference. In reception centres there are children who have long been excluded from education in the country of origin, without education in transit, or children who have long been excluded from education in the country of origin, but had some form of education in transit countries where they spent a long time (with frequent interruptions due to relocation), as well as children who have never been to education, neither in the country of origin, nor in transit countries. The number of migrant children and students in educational institutions has changed in relation to migratory movements. In September 2019, the enrolment of migrant students in educational institutions continued. Coverage of the education system in the school year 2019/20 is 97-98%.

Table 2. Number of migrant students, school year 2019-2020

School year 2019/2020				
	2019	PS	SS	PPP
September	131	59	18	208
October	124	59	9	192
November	135	51	11	197
December	118	50	5	173

Table 3. Percentage of migrant students in primary schools, by school administrations, school year 2019/20.



Having in mind the importance of education for sustainable social inclusion of the migrant population, including minors, unaccompanied migrants as a particularly vulnerable social group, regarding the enrolment of migrants in secondary schools,

the following has been realised:

- Migrant students did not take the final exam due to the impossibility to translate the tests into all languages used by migrant students, noting that the number of students changes as well as the countries they come from, and that students did not attend classes in their mother tongue;
- these students do not have a Citizen's Unique Identification Number which is a necessary data for the database;
- Migrant students who complete the 8th grade are affirmatively enrolled in those high schools where there are vacancies after the second enrolment period;
- Educational advisors at school administrations map the wishes of eighth grade primary school migrant students in cooperation with schools, then map high schools that are close to the centres and where there are vacancies after the second enrolment period, inform high schools about the possibilities of including migrant students in teaching process and inform migrant parents and children about this possibility.

In the school year 2017/18, 15% of migrant students were involved in improving life skills, and the number gradually grew. In the school year 2018/19, this percentage was 17% of migrant students who continued their education in secondary schools, with seventh and eighth grade migrant students who received additional support in preparation for enrolment in secondary school. In the school year 2019/20, that percentage was 28-30%.

Please briefly elaborate further on the measures taken:

MOESTD continues to work on improving the availability and quality of education for migrant students.

III. Methods used to draw the attention of the various authorities in the country to the instruments and to remove the obstacles encountered

1. Challenges and obstacles

- 1.1 Please indicate and provide any information on the difficulties encountered in the process of implementing the key provisions of the Convention/Recommendation (including legal and practical obstacles) and on the main issues that need to be addressed for promoting further the right to education in your country (several items could be ticked/mentioned):

- ☐ Challenges related to equitable access and inclusion in education (such as poverty and socio-economic factors, cultural and traditional attitudes, remoteness, migration and displacement, etc.)

The biggest challenges for the education system are the inclusion of children from deprived areas in education, then the elimination of poverty, reducing dropouts and early school leaving, especially when it comes to girls. Migration movements, especially outside the borders of Serbia, significantly affect the regular attendance of classes.

- ☐ Challenges related to the quality of education (such as shortages of qualified, trained and motivated teaching staff, non-supportive or inadequate teaching and learning as well as school environment, etc.)

- ☐ Challenges relating to the system and governance (such as budgetary constraints, lack or weakness of monitoring systems – including the lack of reliable data, absence of supportive/inconsistent/obsolete legal and policy environment, lack of involvement of relevant stakeholders and lack of cooperation/coordination at different levels, etc.)

- ☐ Other:

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- 1.2 Please provide a brief assessment of the effectiveness of the methods introduced to remove the obstacles encountered:

MOESTD monitors the needs of the education system and takes measures to improve the availability and quality of education.

2. Awareness-raising

UNESCO governing bodies have underlined the need for awareness raising. Given the importance of normative action at the national level, wide dissemination of the Convention must be ensured, with the support of National Commissions for UNESCO.

- Have activities been carried out to draw the attention of the various authorities of the country to the Convention/Recommendation and their provisions about the right to education and to raise awareness of the principles of non-discrimination and equality of educational opportunities? (several items could be ticked/mentioned)

☐ **Translation of the Convention/Recommendation into the national and possibly local languages**

- ☐ Dissemination and advocacy of the core content of the Convention/Recommendation or the core principles of the right to education
- ☐ Increased public awareness through advocacy material on the Convention/Recommendation or the core principles of the right to education
- ☐ Activities undertaken or supported by the National Commission to promote non-discrimination and equality of educational opportunities and to foster debate on critical issues in relation to the rights enshrined in the instruments
- ☐ Other:

The Convention against Discrimination in Education has been translated into Serbian and is available on the websites of the institutions.